POLICY RECOMMENDATIONS GUIDEBOOK FOR THE BANGSAMORO GOVERNMENT

A Practical Guide for Policy Analysts, Parliamentary Staff, Ministry Officials, and Consultants

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BANGSAMORO GOVERNMENT

BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO

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About This Guidebook

This guidebook was written for the people who shape policy in the Bangsamoro Autonomous Region in Muslim Mindanao. It is designed for daily use — not as a textbook to be read once and shelved, but as a working reference to be consulted every time you sit down to analyze a problem, evaluate policy options, or write a recommendation.

The guidebook covers the full lifecycle of a policy recommendation in the Bangsamoro government: from identifying a problem and gathering evidence, through analysis and formulation, to consultation, quality review, approval, and implementation monitoring. It applies whether you work in a ministry, a parliamentary office, or a consulting team. The methodology works whether you are recommending a new program, proposing reforms to an existing one, or advising on policy responses to emerging challenges.

The analytical framework at the center of this guidebook is Bardach's Eightfold Path — a structured methodology for policy analysis that moves from problem definition through evidence gathering, alternative construction, and outcome projection to a final recommendation. This framework has been adapted to fit the specific context of Bangsamoro governance: the legal authority of the BOL, the priorities of the Bangsamoro Development Plan 2023-2028, the parliamentary system, and the cultural and institutional realities of the region.

Every legal provision cited from the Bangsamoro Organic Law (Republic Act No. 11054) has been quoted verbatim from the source text. References to Bangsamoro Autonomy Acts, national laws, and policy documents use official titles and citations. The guidebook draws on real policy work — including policy recommendations and briefs produced for Other Bangsamoro Communities (OBCs) — to illustrate how each step translates into practice.

This guidebook is written to be timeless. It applies equally to the transition period and to the elected Bangsamoro government that will follow. Where procedures or conventions are specific to the transition period, the text says so. In all other respects, the guidance here serves any policy analyst working under the Bangsamoro Organic Law, regardless of when they read it.

About the Author

Saidamen "Sayeed" R. Mambayao has worked in governance, legislation, and cooperative development across the Bangsamoro region for over a decade.

Before the establishment of the Bangsamoro Autonomous Region, he served as a Consultant of the Cooperative Development Authority under the former Autonomous Region in Muslim Mindanao, where he led programs on cooperative development, Islamic finance, and executive leadership. He also served as Secretariat Head and Program Director of the Bangsamoro Executives and Leaders League (BELL), Inc., and held leadership roles in the ARMM Islamic Finance Sub-Cluster and the Bangsamoro Coalition on Social Enterprise.

When the Bangsamoro Transition Authority was established in 2019, he led the development and implementation of two BARMM flagship programs: the Access to Higher and Modern Education (AHME) Scholarship Program under the Ministry of Basic, Higher, and Technical Education, and the Engaging the SK, Empowering the Youth (ESKEY) Program under the Ministry of the Interior and Local Government. He later served as Chief of Staff at the Office of a Member of Parliament, where he assisted on legislative portfolios covering women, youth, children, persons with disabilities, cooperatives, social enterprises, and halal industries. He drafted and reviewed legislative measures on scholarships, cultural heritage preservation, assistance to Other Bangsamoro Communities, and cooperative and social enterprise development. He also served as OIC-Legislative Affairs at the Office of MP Sittie Fahanie S. Uy-Oyod.

He is the Founder of MoroTech and MoroAcademy, social enterprises empowering Bangsamoro organizations and communities through knowledge and technology, and the Founding Chairperson of the Bangsamoro Scholars Association. He also founded the SEED Initiative, a consultancy and training firm focused on cooperative and social enterprise development. He is an Active Citizen and graduate of the British Council's CSO-SEED Business and Investment Readiness Program.

Introduction

How to Use This Guidebook

This guidebook is a working tool. Keep it on your desk — not on a shelf. Reach for it when you sit down to analyze a policy problem, draft a recommendation, or prepare a brief for a decision-maker.

The structure follows the life of a policy recommendation. It begins with the policy cycle and the Bangsamoro policy environment, moves through evidence gathering and analysis, and takes you step by step through structuring, reviewing, and implementing a recommendation. Each chapter builds on the one before it, but you do not need to read the guidebook cover to cover.

If you need to cost a recommendation, go to Chapter 6 on budgetary analysis. If you are struggling with how to frame your alternatives, go to Chapter 4 on structuring a recommendation using Bardach's Eightfold Path. If a reviewer raises a legal compliance question, go to Chapter 5.

A few conventions will help you get the most out of it:

- **Verbatim BOL quotations** appear in blockquotes. These are taken directly from Republic Act No. 11054. When the guidebook quotes the Bangsamoro Organic Law, it reproduces the text exactly.
- **Analytical rules** are stated plainly. Where a standard exists — use evidence to support every claim, cost every recommendation, check legal authority before proposing action — the guidebook tells you what it is and how to follow it.
- **Examples** are drawn from actual BARMM policy work. When an illustration helps make a point, the guidebook names the source — whether a BAA, a BDP chapter, or the OOBC policy recommendations — so you can read it yourself.
- **Templates and checklists** appear at the end of relevant chapters. These are designed to be used directly — printed, filled in, and attached to your recommendation document.

This guidebook does not replace the Bangsamoro Organic Law, the Bangsamoro Development Plan, or the judgment of the officials who will approve your recommendation. It works alongside those authorities. It gives you a method for doing the work well.

Who This Guidebook Is For

This guidebook serves four audiences:

Policy analysts and researchers. You work in a ministry, agency, or parliamentary office. Your job is to identify problems, gather evidence, analyze options, and recommend solutions. This guidebook gives you a structured method — from problem definition to final recommendation — that produces consistent, defensible outputs.

Parliamentary and legislative staff. You support Members of Parliament in evaluating policy proposals, preparing committee inputs, and developing legislative positions. This guidebook shows you how to structure the analytical work that underpins those outputs. It complements the Bill Drafting Guidebook by covering the policy analysis that should happen before a bill is drafted.

Ministry officials and program managers. You design and implement programs. When you need to propose a new program, expand an existing one, or respond to a policy gap, this guidebook walks you through the analytical and documentation requirements that get your proposal taken seriously.

Consultants and development partners. You provide technical assistance to the Bangsamoro government. This guidebook ensures your deliverables match the standards the government expects — grounded in the BOL, aligned with the BDP, costed against actual budget sources, and validated through proper consultation.

What Connects These Audiences

Regardless of your role, you share one task: turning evidence into a clear recommendation that a decision-maker can act on. The difference between a recommendation that sits in a drawer and one that becomes policy often comes down to three things — analytical rigor, legal grounding, and practical feasibility. This guidebook addresses all three.

What This Guidebook Does Not Cover

This guidebook does not teach you how to draft legislation. Bill drafting is a separate discipline with its own conventions, and the Bill Drafting Guidebook for the Bangsamoro Parliament covers it comprehensively. When your policy recommendation leads to a proposed bill, hand your analysis to the drafter — or consult the Bill Drafting Guidebook if you are doing the drafting yourself.

This guidebook does not cover executive rulemaking — the process of developing implementing rules and regulations (IRRs) after a law or executive order is signed. IRR drafting has its own requirements and timelines. Where policy recommendations interact with IRR development, this guidebook notes the connection, but the detailed mechanics are outside its scope.

This guidebook also does not teach substantive policy content. It does not tell you whether a particular program design is sound social policy or whether a proposed budget allocation is fiscally prudent. Those are questions for subject-matter experts. This guidebook gives you the method for organizing your analysis, presenting your options, and defending your recommendation — whatever the subject matter.

The Relationship Between Policy and Legislation

A well-crafted policy recommendation often precedes legislation. The analysis you do at the policy stage — defining the problem, mapping the legal landscape, costing the solution, consulting stakeholders — becomes the foundation for a bill's explanatory note and the evidence base for committee deliberations.

Think of policy analysis and bill drafting as two phases of the same process. This guidebook handles the first phase. The Bill Drafting Guidebook handles the second. When used together, they produce legislation that is both analytically sound and legally precise.

Three Principles for the Policy Analyst

Three principles should guide every recommendation you write:

Ground every claim in evidence. A policy recommendation is not an opinion paper. Every assertion about the size of a problem, the effectiveness of a solution, or the cost of inaction needs a source. When you lack data, say so — and explain what data you would need. Decision-makers trust analysts who are honest about what they know and what they do not.

Respect the limits of Bangsamoro authority. The Bangsamoro government has broad powers under the BOL. But those powers have boundaries — constitutional, statutory, and fiscal. Before you recommend an action, verify that the Bangsamoro government has the authority to take it. Before you propose a budget, verify that a funding source exists. Chapter 5 and Chapter 6 of this guidebook address these questions in detail.

Write for the decision-maker. Your recommendation will be read by a Chief Minister, a Minister, or a Member of Parliament. These officials are busy. They need to understand the problem, see the options, and know what you recommend — all within the first two pages. Everything else is supporting evidence. Structure your document so the decision-maker can act on it quickly and return to the details when needed.

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01

The Policy Cycle in BARMM

Policy work follows a cycle. Understanding where you are in that cycle determines what kind of analysis you need, what outputs you produce, and who you engage. This chapter lays out the full policy cycle as it operates in the Bangsamoro government and shows you where your work fits.

1.1 What Policy Work Means in the Bangsamoro

Policy work in the Bangsamoro government means translating the region's development priorities into concrete actions — programs, regulations, legislative proposals, executive orders, and institutional reforms. The work happens across every ministry, in every parliamentary office, and in every interagency coordination mechanism.

The Bangsamoro Organic Law establishes the legal authority. The Bangsamoro Development Plan 2023-2028 sets the strategic direction. Your job as a policy analyst is to connect the two: identify where the gap between current conditions and BDP targets is widest, analyze what interventions will close that gap, and recommend specific actions to the officials who have the authority to decide.

Policy work in the Bangsamoro carries a weight that policy work in more established jurisdictions does not. The region is still building its institutions. Many policy areas lack precedent — no existing BAA, no established program, no prior implementation experience. When you write a policy recommendation in the Bangsamoro, you are often writing the first version. The quality of your analysis shapes whether the government gets it right from the start.

The Parliamentary System and Policy

The Bangsamoro uses a parliamentary form of government. Article IV, Section 3 of the BOL states:

> The Bangsamoro Autonomous Region shall have a democratic political system that allows its people to freely participate in the political processes within its territorial jurisdiction. The Bangsamoro Autonomous Region shall have a parliamentary form of government.

This matters for your policy work. In a parliamentary system, the executive and legislative branches are fused. The Chief Minister and most of the Cabinet are Members of Parliament. Executive priorities and legislative action are tightly linked. A policy recommendation from a ministry can become a government bill within weeks — if the analysis is sound and the recommendation is clear.

This creates an opportunity that policy analysts in other Philippine LGUs do not have. Your recommendation does not need to survive the gap between a separate executive and legislature. If a Ministry endorses your recommendation, the Minister who sits in Parliament can champion it directly. But this also raises the standard. A sloppy recommendation that reaches the Parliament floor will be scrutinized by colleagues who understand the subject matter. Do the work properly.

1.2 The Six-Stage Policy Cycle

The policy cycle has six stages. Each stage produces specific outputs and feeds into the next. The cycle is not strictly linear — you will loop back, revise, and iterate. But understanding the sequence helps you know what the current stage demands and what comes next.

1.2.1 Problem Identification

Goal: Define the problem clearly enough that others can agree it exists.

Every policy recommendation begins with a problem. The problem may surface from community complaints, budget execution reports, international benchmarks, field observations, or a directive from a minister or MP. Your task at this stage is not to solve the problem — it is to define it.

A well-defined problem has four characteristics:

1. **Specificity.** "Education outcomes are poor" is not a problem statement. "Completion rates in BARMM secondary schools dropped from 72% to 64% between 2021 and 2024" is a problem statement.
2. **Measurability.** You can attach a number to it — a percentage, a count, a budget figure, a comparison.
3. **Attribution.** You can point to a cause or a contributing factor, even if the full causal chain is not yet clear.
4. **Relevance to BARMM authority.** The problem falls within an area where the Bangsamoro government has the power to act. Problems outside Bangsamoro jurisdiction — national tax policy, foreign affairs, immigration — are not problems you can solve through a BARMM policy recommendation.

Output: A problem statement — one to three sentences that describe what is happening, who is affected, and why the Bangsamoro government should act.

1.2.2 Policy Analysis

Goal: Understand the problem's root causes, scope, and context.

Once the problem is defined, you analyze it. This is where evidence comes in. Gather data from PSA-BARMM, ministry reports, legislative records, academic research, and field consultations. Map the stakeholders who are affected and those who have influence over the outcome. Identify what the government is already doing and what gap remains.

Chapter 3 of this guidebook covers the methods and sources for evidence-based analysis in detail. At this stage, the key question is: **what is causing the problem, and what would need to change for the problem to be solved?**

Output: A situation analysis or background paper that presents the evidence, identifies root causes, and maps the stakeholder landscape.

1.2.3 Policy Formulation

Goal: Develop alternative solutions and recommend one.

This is the creative and analytical heart of the policy cycle. You construct at least three policy alternatives — including the status quo — and evaluate each against clear criteria: effectiveness, feasibility, cost, equity, legality, and political acceptability.

Chapter 4 introduces Bardach's Eightfold Path as the structured methodology for this stage. The Eightfold Path moves you through problem definition, evidence assembly, alternative construction, criteria selection, outcome projection, trade-off analysis, and the final recommendation.

The output of this stage is your policy recommendation document — the deliverable this entire guidebook teaches you to produce.

Output: A policy recommendation with four sections — Context and Rationale, Policy Framework, Implementation Structure, and Management Framework — plus an executive summary.

1.2.4 Policy Adoption

Goal: Secure approval from the decision-maker.

Your recommendation reaches the decision-maker through the approval chain described in Chapter 8. The decision-maker may be a Minister, the Chief Minister, or the Parliament itself — depending on whether the recommendation requires executive action, a budget allocation, or new legislation.

At this stage, you are no longer the analyst. You are the advocate for your recommendation. Prepare to answer questions, defend your evidence, and explain your trade-offs. If the decision-maker modifies your recommendation, incorporate the changes and document why.

Output: An approved policy recommendation — signed, endorsed, and ready for implementation.

1.2.5 Policy Implementation

Goal: Turn the recommendation into action.

Implementation is where policy succeeds or fails. A recommendation that sits in a file is not policy — it is paper. Chapter 9 covers the mechanics of moving from recommendation to action: translating recommendations into work plans, assigning implementing agencies, setting milestones, and allocating budgets.

Your role as the policy analyst does not end at adoption. Stay involved. Monitor early implementation. Flag bottlenecks. Provide technical support to implementing agencies that need it.

Output: An implementation plan with assigned agencies, timelines, budgets, and performance targets.

1.2.6 Policy Evaluation

Goal: Assess whether the policy achieved what it was supposed to.

Evaluation closes the cycle — and opens the next one. After a defined implementation period, measure the policy's outcomes against the targets set in the recommendation. Did completion rates improve? Did the target population receive services? Did costs stay within projections?

Evaluation feeds new evidence back into the cycle. If the policy worked, you may recommend scaling it. If it fell short, you analyze why and propose adjustments. If conditions have changed, you may recommend a new approach entirely.

Output: An evaluation report with findings, conclusions, and recommendations for the next cycle.

1.3 How the Policy Cycle Works in Practice

The textbook cycle is clean. Real policy work is not.

In practice, you will often enter the cycle at Stage 3 — a Minister asks you to draft a recommendation for a program that already has political support. Or you will be asked to evaluate an existing program (Stage 6) and find that the original problem was never properly defined (Stage 1). Or a stakeholder consultation at Stage 5 will reveal new information that forces you back to Stage 2.

None of this is a failure of the process. The policy cycle is a map, not a rail line. You use it to orient yourself, not to constrain yourself. The key discipline is this: **wherever you enter the cycle, go back and check the stages you skipped.**

If you are asked to write a recommendation without a problem definition, write the problem definition first. If you are asked to implement a policy without an evidence base, flag the gap. If you are asked to evaluate a program that has no performance targets, define the targets retroactively and note the limitation.

The Iterative Nature of Good Policy Work

The best policy recommendations go through multiple iterations. You define a problem, gather evidence, realize the problem is different from what you assumed, redefine it, gather more evidence, formulate alternatives, consult stakeholders, discover a legal constraint you missed, revise your alternatives, and finally settle on a recommendation.

This iteration is not inefficiency. It is rigor. Each pass through the cycle makes your recommendation stronger. Budget your time accordingly. A recommendation that takes three weeks of careful iteration will serve the Bangsamoro better than one that takes three days of surface-level analysis.

1.4 Entry Points for Policy Staff

Your entry point into the policy cycle depends on your role:

Role	Typical Entry Point	Primary Output
Ministry policy analyst	Problem identification or analysis	Policy recommendation or brief
Parliamentary staff	Analysis of a filed bill or committee referral	Legislative briefer or position paper
Program manager	Evaluation of an existing program	Evaluation report with recommendations
Consultant	Any stage, as directed by the client	Varies — recommendation, brief, evaluation, or assessment
MP office legislative staff	Problem identification from constituent feedback	Policy brief or proposed legislative measure

Regardless of your entry point, the analytical standards are the same. Every recommendation needs a defined problem, an evidence base, legal grounding, a budget analysis, and stakeholder validation. The chapters that follow cover each of these requirements in detail.

1.5 Policy Cycle Flowchart

The following diagram shows the six-stage policy cycle and its key outputs:

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┌──────────────────────────────────────────────┐
│                                              │
│   1. PROBLEM IDENTIFICATION                  │
│   Output: Problem Statement                  │
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│   2. POLICY ANALYSIS                         │
│   Output: Situation Analysis / Background Paper │
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│   3. POLICY FORMULATION                      │
│   Output: Policy Recommendation Document     │
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│                                              │
│   4. POLICY ADOPTION                         │
│   Output: Approved Policy / Executive Order /  │
│           Legislative Measure                │
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│   5. POLICY IMPLEMENTATION                   │
│   Output: Implementation Plan / Work Plan    │
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│   6. POLICY EVALUATION                       │
│   Output: Evaluation Report                  │
│        ──────────────────────────────        │
│        Feeds back to Stage 1                 │
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                    └──────────────────────────────────────┘
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                                   │
                                   └──────────────→ (Back to Stage 1)
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The arrows indicate the primary flow. In practice, feedback loops connect every stage to every other. The most common loops are:

- **Stage 3 → Stage 2:** Formulating alternatives reveals evidence gaps, sending you back to analysis.
- **Stage 5 → Stage 3:** Implementation difficulties trigger policy revision.
- **Stage 6 → Stage 1:** Evaluation findings define new problems for the next cycle.

Use this flowchart as a reference point. When you are unsure what to do next, locate yourself in the cycle and look at the output the current stage requires. If you cannot produce that output, you probably need to go back one stage.

Connecting the Policy Cycle to the Rest of This Guidebook

Each stage of the policy cycle corresponds to one or more chapters in this guidebook:

Stage	What You Need	Where to Find It
Problem Identification	How to define a problem	Chapter 3 (Evidence-Based Analysis), Section 3.4
Policy Analysis	Research methods and data sources	Chapter 3 (Evidence-Based Analysis)
Policy Formulation	Bardach methodology and the four-section template	Chapter 4 (Structuring a Recommendation)
Policy Adoption	Quality review and approval chain	Chapter 8 (Quality Review and Approval)
Policy Implementation	Work plans, milestones, M&E	Chapter 9 (From Recommendation to Action)
Policy Evaluation	KPIs, reporting, feedback loops	Chapter 9, Sections 9.3-9.4

Two chapters cut across all stages:

- **Chapter 5 (Legal Foundations)** — legal compliance is relevant at every stage, from verifying authority at problem identification to ensuring your implementation plan respects legal requirements.

- **Chapter 6 (Budgetary Analysis)** — fiscal considerations shape your alternatives, constrain your options, and determine whether your recommendation is feasible.

Use the policy cycle as your roadmap through the guidebook. When you know what stage you are in, you know which chapter to consult.

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02

Understanding the Policy Environment

Before you write a single recommendation, understand the environment you are working in. The Bangsamoro policy environment is defined by law, development strategy, institutional structure, and the communities the government serves. This chapter maps that environment so you can navigate it with confidence.

2.1 The Bangsamoro Organic Law as the Governing Framework

The Bangsamoro Organic Law — Republic Act No. 11054 — is the foundation of everything. Every policy recommendation you write must be consistent with the BOL. Every program you propose must fall within the powers it grants. Every budget you estimate must align with the fiscal framework it establishes.

2.1.1 Enumerated Powers and Policy Domains

Article V, Section 2 of the BOL lists fifty-five subject areas over which the Bangsamoro government exercises exclusive authority. These enumerated powers define the policy space you work in. They include:

- Administrative organization and governance
- Creation of sources of revenue
- Education policy and institutions
- Health services and disease prevention
- Social welfare and development
- Labor and employment
- Trade and industry
- Agriculture, fisheries, and forestry
- Environmental protection and natural resources management
- Public works and infrastructure
- Tourism development
- Science and technology
- Cooperative development
- Shari'ah law and the Shari'ah justice system
- Cultural heritage preservation and development

- Youth, women, and marginalized sector development
- Halal industry regulation

Before you begin any policy analysis, verify that your subject falls within these enumerated powers. If it does, you have clear authority to recommend action. If it does not, check whether the general welfare clause applies (Section 2.1.3 below) or whether the subject falls under concurrent or reserved national powers.

2.1.2 Reserved and Concurrent Powers

Not all policy domains belong to the Bangsamoro government. The BOL reserves certain powers to the national government:

- Defense and external security
- Foreign affairs
- Monetary policy, currency, and banking regulation
- Citizenship and immigration
- Customs and tariff regulation
- Postal service

Other areas involve **concurrent authority** — both the Bangsamoro government and the national government can act, subject to coordination. These include:

- Disaster risk reduction and management
- Environmental protection (where national standards apply)
- Public health (particularly epidemic response)
- Social protection programs with national components

When your policy recommendation touches a concurrent area, you must address the coordination mechanism. Who leads — the Bangsamoro ministry or the national agency? How do budgets overlap? What memoranda of agreement exist? The Intergovernmental Relations Body (IGRB) established under the BOL is the primary forum for resolving these questions.

2.1.3 The General Welfare Clause

Article V, Section 3 of the BOL provides a general welfare clause:

> In addition to its powers and prerogatives under this Organic Law, the Bangsamoro Government shall exercise its authority over all matters and affairs necessary for the promotion of the general welfare of the Bangsamoro people within its territorial jurisdiction.

This clause gives the Bangsamoro government the flexibility to address emerging issues not explicitly listed in Article V, Section 2 — provided the action promotes the general welfare and does not conflict with the Constitution, national law, or the BOL itself.

Use the general welfare clause carefully. It is not a blanket authorization to act on any subject. A policy recommendation that relies primarily on the general welfare clause should explain why the subject is not covered by an enumerated power and why the proposed action is necessary for the general welfare. Decision-makers and legal reviewers will ask.

2.2 The Bangsamoro Development Plan 2023-2028

The **Bangsamoro Development Plan (BDP) 2023-2028** is the strategic framework that guides all Bangsamoro government programs, projects, and activities. Where the BOL tells you what you can do, the BDP tells you what the government has prioritized.

2.2.1 Structure and Strategic Goals

The BDP 2023-2028 is organized around three overarching strategic goals:

1. **Moral governance** — Strengthening institutions, improving public trust, and ensuring transparent, accountable government.
2. **Meaningful self-determination** — Building the capacity for genuine self-governance across all levels of the Bangsamoro.
3. **Genuine socioeconomic development** — Improving the material well-being of Bangsamoro communities through inclusive economic growth and social service delivery.

These goals are operationalized through fifteen chapters covering sectors from education and health to infrastructure and fiscal management. Each chapter includes situation analyses, outcome indicators, targets, and priority strategies.

2.2.2 Using the BDP to Ground Policy Recommendations

Every policy recommendation you write should reference the BDP. Not because it is a bureaucratic requirement — though it is — but because the BDP provides the strategic logic that connects your specific recommendation to the government's broader agenda.

When grounding a recommendation in the BDP:

1. **Identify the relevant BDP chapter and section.** A recommendation on scholarship programs references the education chapter. A recommendation on halal certification references the trade and industry chapter.
2. **Cite the specific outcome indicators and targets.** The BDP sets measurable targets. Your recommendation should explain which targets it advances and by how much.
3. **Show alignment with priority strategies.** Each BDP chapter lists priority strategies. Your recommendation should map directly to one or more of these strategies.

4. **Acknowledge where your recommendation goes beyond the BDP.** If your proposal addresses an issue the BDP does not cover, say so. Explain why the issue deserves attention despite its absence from the plan. Decision-makers appreciate honesty about what is and is not in the existing strategic framework.

2.3 MOA Mandates and International Commitments

The Bangsamoro government's policy obligations extend beyond the BOL and the BDP. Two categories of external commitments shape the policy environment:

Peace agreement commitments. The Comprehensive Agreement on the Bangsamoro (CAB) and its annexes — including the Framework Agreement on the Bangsamoro (FAB), the Annex on Revenue Generation and Wealth Sharing, and the Annex on Normalization — contain specific commitments on governance, fiscal transfers, transitional justice, and socioeconomic development. Policy recommendations on topics like revenue sharing, decommissioning, or transitional justice must account for these commitments.

International development goals. The Bangsamoro government has aligned its development agenda with the Sustainable Development Goals (SDGs) and participates in monitoring frameworks coordinated by the National Economic and Development Authority (NEDA). When your recommendation touches an SDG-related target — poverty reduction, gender equality, education quality, environmental sustainability — reference the relevant SDG and the Philippines' reporting obligations.

2.4 National Laws and Their Applicability in the Bangsamoro

National laws apply in the Bangsamoro unless superseded by the BOL or a duly enacted BAA. This creates a layered legal environment that you must navigate carefully.

General rule: National laws continue to apply in the Bangsamoro until the Bangsamoro Parliament enacts its own legislation on the subject. Once the Parliament enacts a BAA on a subject within its enumerated powers, the BAA governs — and the corresponding national law no longer applies in the region to the extent of any inconsistency.

Practical implications for policy work:

- Before recommending a new program, check whether a national law already governs the subject. If so, determine whether the national law applies directly or has been superseded by a BAA.
- If no BAA exists on the subject, your recommendation may need to address the gap — either by proposing legislation or by recommending an executive program that operates within the existing national legal framework.
- When your recommendation involves coordination with national government agencies, cite the national law that governs the NGA's mandate and explain the coordination mechanism.

2.5 Stakeholder Mapping

Every policy recommendation affects people and institutions. Identifying those stakeholders early — and understanding their interests, influence, and positions — strengthens your analysis and prevents surprises during consultation and implementation.

2.5.1 Government Stakeholders

Start with the institutions inside the Bangsamoro government:

- **The Parliament.** If your recommendation requires legislation, the Parliament is your primary institutional stakeholder. Identify which committees have jurisdiction.
- **The Chief Minister and Cabinet.** If your recommendation requires executive action, it must pass through the Cabinet process. Identify which ministry is the lead implementing agency and which ministries have overlapping mandates.
- **The Bangsamoro Planning and Development Authority (BPDA).** BPDA coordinates the BDP and reviews programs for alignment with the development plan. Your recommendation will likely require BPDA endorsement.
- **Local government units.** Provinces, municipalities, cities, and barangays within the Bangsamoro have their own mandates under both national law and the BOL. If your recommendation affects local service delivery, LGUs are stakeholders.

2.5.2 Civil Society and the Private Sector

The Bangsamoro has an active civil society landscape — from large peace-building organizations to community-based cooperatives. Private sector actors — traders, entrepreneurs, industry associations — are stakeholders in any economic or regulatory policy.

Map civil society stakeholders by:

- **Sector.** Who works on the issue your recommendation addresses?
- **Geography.** Which organizations are active in the affected areas?
- **Track record.** Who has implemented relevant programs before?

2.5.3 Indigenous Peoples and Traditional Structures

The Bangsamoro is home to diverse communities, including non-Moro indigenous peoples whose rights are specifically protected under the BOL. Article IX, Section 4 of the BOL provides:

> The rights of the indigenous peoples in the Bangsamoro Autonomous Region to their identity, their ancestral land, and self-governance shall be recognized and protected.

Policy recommendations that affect indigenous communities must address their specific rights and consultation requirements. Traditional governance structures — sultans, datus, tribal councils — also play a role in community decision-making and should be mapped as stakeholders.

2.5.4 International Development Partners

The Bangsamoro government works with multiple international development partners — the World Bank, JICA, USAID, UNDP, the European Union, and others. These partners fund programs, provide technical assistance, and bring international best practices.

When your recommendation involves an area where a development partner is active, include them in your stakeholder map. They may have data you need, programs you can build on, or coordination requirements you must satisfy.

2.6 Shari'ah and Cultural Considerations

The Bangsamoro is the only region in the Philippines with a Shari'ah justice system and specific provisions for Islamic law in governance. Policy recommendations must account for this.

When Shari'ah considerations apply:

- Policies affecting personal status — marriage, divorce, inheritance, custody — are governed by the Code of Muslim Personal Laws (PD 1083) and any superseding BAA.
- Policies on Islamic banking and finance must comply with both Republic Act No. 11439 (Islamic Banking Act) and relevant BOL provisions.
- Policies on education must account for the Madrasah education system and the integration of Islamic studies into the Bangsamoro education framework.
- Policies on halal industry regulation must comply with both national standards (NFA, DTI) and Bangsamoro regulatory frameworks.
- Policies on waqf (Islamic endowment) and zakat (obligatory alms) are within the Bangsamoro's exclusive authority.

When cultural considerations apply:

Not every cultural consideration is a Shari'ah question. Many policy issues — land use, environmental management, conflict resolution, youth development — are shaped by cultural practices and traditions that are not strictly Islamic in origin. The Bangsamoro is culturally diverse. The Tausug, Maguindanaon, Maranao, Sama, Yakan, and other communities have distinct practices and priorities.

Your stakeholder mapping should identify which cultural communities are affected by your recommendation. Your consultation process should include mechanisms for hearing from those communities. Your recommendation should acknowledge cultural considerations where they are relevant — but avoid reducing every issue to a cultural question. Some problems are technical, administrative, or fiscal. Address them on those terms.

Practical Guidance for Navigating the Policy Environment

Map your policy environment before you begin your analysis. Use the following framework:

Step 1: Legal scan. Identify the BOL provisions, BAAs, and national laws that govern your subject. This takes one to two days of desk research. Do not skip it.

Step 2: BDP alignment check. Find the relevant BDP chapter, outcome indicators, and priority strategies. If your recommendation does not align with any BDP target, you need a strong justification for why it deserves attention.

Step 3: Stakeholder inventory. List every government agency, civil society organization, private sector actor, and community group that has a stake in your policy area. Classify each as a potential supporter, opponent, or neutral party.

Step 4: Environmental scan. Identify recent developments — new legislation, budget changes, political shifts, court decisions, international commitments — that affect your policy area. The policy environment is not static. What was true six months ago may not be true today.

Step 5: Constraint mapping. List the constraints that will shape your recommendation — legal limits, fiscal ceilings, implementation capacity, political feasibility, cultural sensitivity. These constraints are not obstacles to be ignored. They are parameters to be respected. A recommendation that ignores them will fail.

Document this environmental analysis as the foundation of your recommendation's Context and Rationale section (Chapter 4, Section 4.2.1). The better you understand the environment, the more realistic and actionable your recommendation will be.

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03

Evidence-Based Policy Analysis

Good policy starts with good evidence. This chapter covers the research methods, data sources, and analytical practices you need to produce policy recommendations that decision-makers can trust.

3.1 Why Evidence Matters

A policy recommendation without evidence is an opinion. Decision-makers receive many opinions. What they need — and what your job requires you to deliver — is analysis grounded in facts.

Evidence serves three purposes in a policy recommendation:

1. **It establishes the problem.** Without data, you cannot prove a problem exists or measure how serious it is. “Fisheries in Tawi-Tawi are declining” is a claim. “Total fish catch in Tawi-Tawi dropped from 42,000 metric tons in 2020 to 28,000 metric tons in 2024, a 33% decline, according to PSA-BARMM” is evidence.
2. **It supports your proposed solution.** When you recommend a specific intervention — a scholarship program, a regulatory reform, a new implementing structure — you need evidence that the intervention works. That evidence may come from pilot programs in the Bangsamoro, comparable programs in other regions, or academic research on the policy problem.
3. **It defends your recommendation against scrutiny.** Every recommendation will be questioned. A reviewer will ask: How do you know this will work? What is the basis for your cost estimate? Why did you reject the alternative? Evidence answers those questions. Without it, your recommendation will not survive the review process.

3.2 Research Methods for Policy Analysis

Policy research draws on multiple methods. The right method depends on your question, your time, and the data available. Most policy recommendations use a combination of methods.

3.2.1 Desktop Research and Document Review

Start here. Before you interview anyone or conduct a survey, review what already exists:

- **Legal documents.** The BOL, relevant BAAs, national laws, executive orders, and implementing rules that govern your subject.
- **Policy documents.** The BDP, sectoral development plans, agency strategic plans, and prior policy recommendations on the same or related topics.
- **Budget documents.** Annual budgets, budget execution reports, and financial statements from the relevant agencies.
- **Reports and evaluations.** Program evaluation reports, audit findings, committee reports, and published research.

Desktop research is fast, cheap, and essential. It prevents you from reinventing analysis that someone else has already done. It also reveals gaps — questions that existing documents cannot answer — which you then address through primary research.

Practical tip: Create a document inventory at the start of your analysis. List every relevant document, where you found it, what it covers, and what gaps remain. This inventory becomes part of your evidence trail (Section 3.6).

3.2.2 Key Informant Interviews

Key informant interviews (KIIs) collect qualitative data from people who know the subject. Your informants may include:

- Government officials responsible for implementing relevant programs
- Community leaders in affected areas
- Subject-matter experts in academia, civil society, or the private sector
- Beneficiaries of existing programs

Design your interviews with structure. Prepare an interview guide with open-ended questions. Focus on what the informant knows from direct experience. Avoid leading questions — do not ask "Don't you think the program is failing?" Ask "How would you describe the program's outcomes so far?"

Document your interviews systematically. Record the date, the informant's name and position (with their consent), the questions asked, and the key responses. This documentation becomes part of your evidence trail.

3.2.3 Focus Group Discussions

Focus group discussions (FGDs) are useful when you need to understand community perspectives — particularly from groups whose voices are underrepresented in official data. FGDs work well for:

- Understanding how communities experience a problem
- Testing whether proposed solutions are culturally appropriate and practically feasible
- Identifying unintended consequences that desk research might miss

Composition matters. A focus group that mixes government officials with community members will produce different results than separate groups. A focus group with only men will miss the perspectives of women. Design your groups deliberately.

Size and number. Plan for 8-12 participants per group. For a province-wide policy, conduct at least one FGD in each affected province. For a regional policy, conduct FGDs across at least three provinces to capture geographic variation.

3.2.4 Survey Design and Administration

Surveys provide quantitative data that complements your qualitative research. Use surveys when you need to:

- Measure the prevalence of a problem across a population
- Quantify demand for a proposed service or program
- Assess satisfaction with an existing program
- Collect demographic data on a target population

Keep surveys short. A survey with more than 30 questions will produce low response rates and unreliable answers. Focus on the questions that directly support your analysis.

Sampling matters. If you are surveying a population of 10,000 beneficiaries, you do not need to survey all 10,000. A properly designed sample of 400-500 respondents can produce statistically valid results. If you lack the time or resources for a statistically valid sample, say so in your analysis. Acknowledge the limitation.

Administration. In BARMM, face-to-face surveys often yield better results than online surveys, particularly in rural areas. Budget for enumerators, translation (especially for communities where Filipino or English is not the primary language), and data encoding.

3.2.5 Comparative Analysis

Comparative analysis looks at how other jurisdictions have addressed the same problem. This is useful because:

- It shows what works and what does not, based on actual implementation experience
- It provides cost benchmarks for budgeting your recommendation
- It identifies design features you may want to adopt or avoid

Compare with care. The Bangsamoro is unique — the only autonomous region in the Philippines, the only parliamentary system, the only jurisdiction with Shari'ah courts. Direct comparisons with other Philippine regions may miss important contextual differences. Compare the intervention design and outcomes, not the institutional context.

Good comparators for BARMM policy work include:

- Other Philippine autonomous or special regions (e.g., Cordillera Administrative Region for governance models)
- Southeast Asian Muslim-majority regions (e.g., Aceh in Indonesia, southern Thailand, Mindanao comparative studies)
- National government programs implemented in the Bangsamoro (e.g., 4Ps, DOST scholarship programs)
- Programs by international development partners operating in the Bangsamoro

3.3 Data Sources for BARMM Policy Work

3.3.1 PSA-BARMM and Official Statistics

The **Philippine Statistics Authority - Bangsamoro Autonomous Region in Muslim Mindanao (PSA-BARMM)** is the primary source of official statistics for the region. PSA-BARMM publishes:

- Population data from the national census
- Poverty incidence and food threshold statistics
- Employment and labor force data
- Agricultural production statistics
- Price indices and inflation data
- Birth, death, and migration statistics

Access: PSA regional data is available through the PSA website (psa.gov.ph) and through PSA-BARMM's Cotabato City office. Some datasets require a formal data request.

Limitation: PSA data is often published with a lag of 1-2 years. The most recent poverty statistics, for example, may be two years old. Acknowledge this in your analysis and supplement with more recent data from other sources when available.

3.3.2 Ministry and Agency Reports

Each Bangsamoro ministry and agency produces periodic reports:

- **Annual accomplishment reports** — summarize programs implemented, beneficiaries served, and budgets spent
- **Budget execution reports** — show how much of the approved budget was actually obligated and disbursed
- **Project monitoring reports** — track the progress of specific programs, projects, and activities

These reports are not always publicly available. You may need to request them through official channels. When citing ministry data, identify the specific report, its date, and the reporting period it covers.

3.3.3 Budget Execution Data

Budget data tells you what the government intended to spend (the General Appropriations Act), what it actually obligated, and what it disbursed. The gap between appropriation and disbursement — the **absorption rate** — is a powerful indicator of implementation capacity.

Key sources:

- The annual General Appropriations Act (BAA) for the BARMM budget
- The Ministry of Finance, Budget, and Management (MFBM) budget reports
- Commission on Audit (COA) annual audit reports for BARMM agencies

How to use budget data in policy analysis:

- A low absorption rate signals implementation problems — your recommendation should address them.
- A trend of declining allocations to a sector signals de-prioritization — your recommendation should argue for why the sector deserves more.
- A comparison between allocation and outcomes reveals efficiency — how much output does each peso produce?

3.3.4 Legislative Records and Committee Reports

The Bangsamoro Parliament's legislative records contain valuable policy information:

- **Committee reports** summarize the findings from committee hearings and investigations, including testimony from stakeholders.
- **Explanatory notes** of filed bills describe the policy problem the bill aims to address and the evidence base the author used.
- **Interpellation transcripts** record the questions and answers during plenary deliberations — often revealing implementation challenges and policy gaps.

Access legislative records through the Parliament's Bills and Index Division or the Policy Research and Legal Services (PRLS).

3.3.5 International and Academic Sources

For comparative evidence and methodological guidance, draw on:

- **World Bank reports** on the Bangsamoro and Mindanao (the Bank has conducted extensive research on conflict, poverty, and governance in the region)

- **JICA, USAID, and UNDP program evaluations** — these often contain data not available elsewhere
- **Academic publications** — the University of the Philippines, Mindanao State University, and international researchers have published on many BARMM policy issues
- **SDG monitoring data** — the UN and Philippine statistical agencies track progress against SDG targets at the regional level

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3.4 Conducting a Needs Assessment

A needs assessment is a structured analysis of the gap between current conditions and desired conditions. It answers the question: **what does the affected population need, and how far are they from having it?**

3.4.1 Defining the Problem

A needs assessment starts with a clear problem statement (see Chapter 1, Section 1.2.1). The problem should be stated in terms of the affected population — not in terms of the government's institutional interests.

Weak problem statement: "The Ministry of Agriculture does not have enough extension workers."

Strong problem statement: "Sixty percent of rice farmers in Maguindanao del Sur have no access to agricultural extension services. Average rice yield in the province is 2.1 metric tons per hectare — 40% below the national average of 3.5 metric tons."

The first statement describes a government capacity problem. The second describes a community need, supported by data, with a measurable gap.

3.4.2 Identifying the Affected Population

Define who is affected by the problem:

- **Geographic scope.** Which provinces, municipalities, or barangays?
- **Demographic profile.** How many people? What are their ages, gender distribution, and economic status?
- **Vulnerability factors.** Are certain groups disproportionately affected — women, youth, persons with disabilities, indigenous peoples, displaced populations?

Be specific. "Bangsamoro communities" is not a defined population. "Internally displaced persons in three relocation sites in Maguindanao del Norte, estimated at 12,400 individuals as of the 2024 DSWD displacement report" is a defined population.

3.4.3 Establishing Baselines and Benchmarks

Your needs assessment must establish two reference points:

1. **Baseline.** The current condition. Where are things right now? Use the most recent data available and cite your source.
2. **Benchmark.** The target condition. Where should things be? Your benchmark may come from the BDP targets, national averages, international standards (e.g., SDG targets), or evidence-based best practices.

The gap between baseline and benchmark is the need. Your policy recommendation proposes how to close that gap — partially or fully — within a defined timeframe.

3.5 Avoiding Common Analytical Pitfalls

Policy analysis in the Bangsamoro is subject to several recurring traps. Watch for them:

Cherry-picking data. Selecting only the evidence that supports your preferred solution while ignoring evidence that contradicts it. Present all relevant evidence — including inconvenient findings — and explain how your recommendation accounts for them.

Confusing correlation with causation. "Provinces with more health centers have lower maternal mortality" does not prove that building health centers reduces maternal mortality. Other factors — roads, trained personnel, cultural practices — may explain the difference. Be careful about causal claims.

Relying on outdated data. BARMM conditions change rapidly. Data from 2018 may not reflect conditions in 2026. Always note the date of your data and assess whether conditions have changed materially since it was collected.

Assuming the problem is the absence of a program. "There is no scholarship program for Bangsamoro students" is not a problem statement — it is a solution statement disguised as a problem. The problem is the low enrollment rate, the high dropout rate, or the unaffordability of tuition. Start with the problem, not the solution.

Ignoring implementation capacity. The best-designed program will fail if the implementing agency lacks the staff, budget, or systems to deliver it. Include an honest assessment of implementation capacity in your analysis. If the capacity is weak, your recommendation should address it — through training, hiring, technical assistance, or phased implementation.

3.6 Documenting Your Evidence Trail

Every piece of evidence in your recommendation should be traceable. When a reviewer asks "Where did this number come from?" you should be able to answer immediately.

Maintain an evidence registry for each policy recommendation. This is a simple table:

No.	Data Point	Source	Date	Location / Access
1	Rice yield per hectare, Maguindanao del Sur	PSA-BARMM, Agricultural Production Statistics 2024	March 2025	psa.gov.ph
2	Number of extension workers, Ministry of Agriculture	MOA Annual Report FY 2025	January 2026	Requested from MOA Planning Division
3	Maternal mortality rate, Bangsamoro	DOH-BARMM Health Statistics Yearbook 2024	June 2025	DOH-BARMM website

This registry serves two purposes. First, it lets you verify and update your evidence if a reviewer challenges it. Second, it becomes an annex to your final recommendation document — showing the decision-maker exactly what evidence you relied on and where to find it.

Treat your evidence registry as a living document. Update it every time you add a new data point to your analysis. When you present your recommendation, attach the registry as an annex.

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04

Structuring a Policy Recommendation

This chapter teaches you how to structure a policy recommendation document. It introduces the Bardach Eightfold Path — a proven methodology for policy analysis — and presents the four-section template you will use for every recommendation you produce.

4.1 The Bardach Eightfold Path

Eugene Bardach's *A Practical Guide for Policy Analysis* established the **Eightfold Path** — an eight-step methodology for working through a policy problem systematically. The method is analytical, not bureaucratic. It does not tell you what to think. It tells you how to organize your thinking so you cover every essential question.

The eight steps are:

4.1.1 Define the Problem

State the problem in terms of the people affected, not in terms of the government's institutional needs. A well-defined problem is specific, measurable, and within the Bangsamoro government's authority to address.

Weak: "The Bangsamoro needs a halal certification program." **Strong:** "Only 12% of food processing businesses in BARMM hold halal certification. Surveys indicate that 68% of consumers in the region prefer halal-certified products. The absence of an accessible, affordable regional certification system limits market access for Bangsamoro producers and reduces consumer confidence."

The first statement assumes the solution. The second defines a problem that could be addressed through multiple solutions — one of which may be a certification program.

Common mistake: Defining the problem as the absence of a policy. "There is no policy on cooperative development" is not a problem. Low cooperative formation rates, high cooperative dissolution rates, or lack of access to cooperative support services — those are problems. Your analysis should start with the condition you want to change, not the instrument you want to create.

4.1.2 Assemble Some Evidence

Gather the data and information you need to understand the problem's scope, causes, and context. Chapter 3 covers research methods and data sources in detail.

Bardach uses the word "some" deliberately. You will never have perfect information. The goal is not to know everything — it is to know enough to make a defensible recommendation. Set a time limit for your evidence-gathering phase. When you reach it, assess what you have. If critical gaps remain, extend the research. If you have enough to analyze the problem and evaluate alternatives, move to the next step.

Practical tip: Organize your evidence around three questions: 1. How big is the problem? (Scope and magnitude) 2. What is causing it? (Root causes and contributing factors) 3. What has been tried before? (Existing interventions and their results)

4.1.3 Construct the Alternatives

Develop at least three policy alternatives, including the status quo. The status quo — continuing current policy — is always an option and must be evaluated on the same terms as the others.

How to construct alternatives:

1. **Start with the status quo.** What happens if the government does nothing differently? What are the projected outcomes?
2. **Develop a moderate intervention.** Build on existing programs, institutions, and budgets. This alternative represents incremental improvement.
3. **Develop an ambitious intervention.** Propose a new program, a new institutional structure, or a significant budget increase. This alternative represents transformative change.
4. **Consider a fourth alternative** if the problem suggests one — perhaps a regulatory approach instead of a programmatic one, or a public-private partnership instead of a purely government intervention.

Each alternative should be described in enough detail that a decision-maker can understand what it would look like in practice — who implements it, what it costs, who benefits, and how long it takes.

4.1.4 Select the Criteria

Define the criteria you will use to evaluate the alternatives. Common criteria for BARMM policy work include:

Criterion	Question It Answers
Effectiveness	Will the alternative solve or significantly reduce the problem?

Criterion	Question It Answers
Feasibility	Can the Bangsamoro government actually implement this? Does it have the staff, budget, and systems?
Cost	What does the alternative cost? Is the cost proportionate to the expected benefit?
Equity	Does the alternative distribute benefits and costs fairly across communities, genders, and income groups?
Legality	Is the alternative within the Bangsamoro government's legal authority? Does it comply with the BOL, national law, and Shari'ah?
Political acceptability	Will the decision-maker and the Parliament support it? Are stakeholders likely to accept it?
Sustainability	Can the alternative be maintained over time, or does it depend on one-time funding or exceptional conditions?
Timeliness	How quickly can the alternative produce results? Does the problem require an urgent response?

You do not need to use all of these criteria for every recommendation. Select the criteria that are most relevant to your specific problem and policy context. Explain why you selected them.

4.1.5 Project the Outcomes

For each alternative, project the likely outcomes against your selected criteria. This is analytical work — it requires you to apply evidence and judgment to predict what will happen.

Be honest about uncertainty. You are projecting outcomes, not guaranteeing them. Use language that reflects your confidence level:

- "Based on the pilot program results in Lanao del Sur, this alternative is expected to increase enrollment by 15-20%."
- "Implementation data from comparable programs suggests costs of PHP 2,500-3,000 per beneficiary, though local conditions may produce higher costs."
- "This alternative's success depends on the Ministry hiring 50 additional field staff within the first year — a challenging but achievable target given current CSC processing times."

4.1.6 Confront the Trade-offs

Every alternative involves trade-offs. The ambitious intervention may be more effective but more expensive. The moderate intervention may be feasible but insufficient. The status quo may be cheap but allows the problem to worsen.

Present the trade-offs clearly. Use a comparison matrix:

Criterion	Status Quo	Alternative A	Alternative B
Effectiveness	Low	Moderate	High
Cost (5-year)	PHP 0	PHP 120M	PHP 340M
Feasibility	High	High	Moderate
Equity	Low	Moderate	High
Timeliness	N/A	6 months	18 months

This matrix gives the decision-maker a visual comparison. It also forces you to be explicit about what you are trading and what you are gaining with each option.

4.1.7 Decide

Make your recommendation. This is the step where you exercise your professional judgment. Based on the evidence you gathered, the alternatives you constructed, and the trade-offs you analyzed, which alternative do you recommend and why?

State your recommendation clearly. Do not hedge. "The analysis suggests that Alternative B may be a reasonable option to consider" is not a recommendation. "This recommendation proposes Alternative B — the establishment of a Bangsamoro Halal Certification Authority — as the most effective and sustainable solution to the certification gap" is a recommendation.

You may recommend a hybrid — elements from multiple alternatives combined into a single proposal. If you do, explain which elements you took from which alternative and why.

4.1.8 Tell Your Story

The final step is communication. Your recommendation must tell a clear story: here is the problem, here is the evidence, here are the options, here is what we recommend, and here is why.

The story should be compelling but honest. Do not overstate the problem to make your recommendation seem more urgent. Do not hide the weaknesses of your preferred alternative. Do not present projected outcomes as guaranteed results.

The four-section template in the next section is your storytelling structure.

4.2 The Four-Section Template

Every policy recommendation you produce should follow this four-section structure. The sections correspond to the questions a decision-maker needs answered: **Why?** (Context and Rationale), **What?** (Policy Framework), **How?** (Implementation Structure), and **Who manages it?** (Management Framework).

4.2.1 Section I — Context and Rationale

This section answers: **Why does this recommendation exist?**

Include:

1. **Problem statement.** One to three sentences defining the problem. Specific, measurable, and within Bangsamoro authority.
2. **Background.** The history and context of the problem. What has been done before? What gap remains?
3. **Evidence base.** The key data points that establish the problem's scope and severity. Cite specific sources.
4. **Legal and policy context.** The BOL provisions, BAAs, BDP targets, and national laws relevant to the problem.
5. **Stakeholder landscape.** Who is affected? Who has been consulted? What did they say?

Length guide: 3-5 pages. Enough to establish the problem and its context. Not so much that the decision-maker loses the thread before reaching the recommendation.

4.2.2 Section II — Policy Framework

This section answers: **What are you recommending?**

Include:

1. **Policy alternatives.** The options you considered, including the status quo. Describe each briefly — 1-2 paragraphs.
2. **Evaluation criteria.** The criteria you used and why you selected them.
3. **Comparison matrix.** A table comparing the alternatives against your criteria.

4. **Recommended alternative.** Your recommendation, stated clearly, with the rationale for choosing it over the other options.
5. **Policy objectives.** What the recommendation aims to achieve, stated as measurable outcomes with targets and timelines.

Length guide: 4-6 pages. This is the analytical heart of the document. Give it the space it needs.

4.2.3 Section III — Implementation Structure

This section answers: **How will the recommendation be carried out?**

Include:

1. **Implementing agencies.** Which ministries, offices, or bodies will carry out the recommendation? Define roles and responsibilities clearly.
2. **Activities and timeline.** What needs to happen, and when? Break implementation into phases — pre-implementation (planning and setup), initial implementation (first year), and full operation.
3. **Budget requirements.** The cost of implementation, broken down by category (personnel, operations, capital). Identify the funding source for each cost line. Chapter 6 covers this in detail.
4. **Human resource requirements.** What staff are needed? New hires, reassignments, or contracted personnel?
5. **Coordination mechanisms.** How will implementing agencies coordinate? What reporting structures, meetings, or shared platforms are needed?

Length guide: 3-5 pages. Be specific enough that an implementing agency could begin planning based on this section alone.

4.2.4 Section IV — Management Framework

This section answers: **How will the recommendation be managed, monitored, and evaluated?**

Include:

1. **Governance structure.** Who has overall responsibility for the recommendation's success? A minister, a committee, a project management office?
2. **Monitoring and evaluation plan.** Key performance indicators, reporting frequency, and evaluation schedule. Chapter 9 covers this in detail.

3. **Risk assessment.** What could go wrong? Identify the top 3-5 risks and propose mitigation measures for each.
4. **Accountability mechanisms.** How will implementing agencies be held accountable for results? What happens if targets are missed?
5. **Sustainability plan.** How will the policy or program be maintained after the initial implementation period? What funding, staffing, and institutional arrangements need to be in place for long-term operation?

Length guide: 2-4 pages. Decision-makers want to see that you have thought beyond the launch.

4.3 Writing the Executive Summary

Write the executive summary last. It distills the entire recommendation into 1-2 pages. A busy decision-maker should be able to read the executive summary alone and understand:

1. What the problem is
2. What you recommend
3. What it will cost
4. What it will achieve
5. What the next step is

Structure the executive summary as follows:

- **Problem.** Two to three sentences.
- **Key findings.** Three to five bullet points summarizing the evidence.
- **Recommendation.** One to two sentences stating your recommended action.
- **Budget.** One sentence with the total cost and funding source.
- **Expected outcomes.** Two to three measurable results.
- **Action required.** What the decision-maker needs to approve, sign, or direct.

Keep the executive summary under 500 words. Every sentence must earn its place. If a sentence does not directly support the decision-maker's ability to act on your recommendation, cut it.

4.4 From Recommendation to Policy Brief

A **policy brief** is a condensed version of your recommendation — typically 4-6 pages — designed for wider circulation. Where the full recommendation goes to the decision-maker, the policy brief may go to parliamentary committees, interagency coordinators, development partners, and stakeholders.

Structure of a policy brief:

1. **Title and date**
2. **Executive summary** (200 words)
3. **Problem statement** (half a page)
4. **Key evidence** (1 page, with data visualizations if possible)
5. **Policy options and recommendation** (1-2 pages)
6. **Implementation highlights** (half a page)
7. **References and contact information**

A good policy brief is a gateway document. It gives the reader enough to understand the recommendation and decide whether to request the full document. It is not a summary that replaces the full analysis — it is an entry point that leads to it.

4.5 Practical Example: OOBC Policy Recommendations

To illustrate how the Bardach methodology and the four-section template work in practice, consider the policy recommendations produced for **Other Bangsamoro Communities (OBCs)**.

The BOL defines Other Bangsamoro Communities as communities outside the BARMM geographic area that share cultural, linguistic, and historical ties with the Bangsamoro people. These communities exist in Zamboanga Peninsula, Northern Mindanao, SOCCSKSARGEN, and the Davao Region.

The OOBC policy work applied the Bardach Eightfold Path as follows:

1. **Problem definition.** OBCs outside the Bangsamoro territory have limited access to services, programs, and representation within the BARMM governance structure — despite BOL provisions for their inclusion.
2. **Evidence assembly.** Desk research on BOL provisions (Article III, Article IX), BDP targets, and existing OBC-related programs. Key informant interviews with OBC leaders and BARMM officials. Field consultations in OBC communities.
3. **Alternative construction.** Three approaches — status quo, enhanced coordination through existing structures, and creation of a dedicated OBC assistance program.
4. **Criteria selection.** Effectiveness, legal basis, budget feasibility, equity, and political acceptability.
5. **Outcome projection.** Each alternative was evaluated against the criteria, with projected reach, cost, and timeline.
6. **Trade-off analysis.** The dedicated program was more expensive but reached more beneficiaries and addressed the BOL mandate more completely.
7. **Decision.** A dedicated OBC assistance program anchored in a parliamentary legislative measure.
8. **Communication.** Ten policy recommendations covering education, livelihood, cultural preservation, health, legal services, representation, youth development, women's empowerment, cooperative development, and infrastructure — each following the four-section template.

These ten recommendations were accompanied by ten policy briefs — condensed versions for circulation to stakeholders and parliamentary committees.

The OOBC example demonstrates a key point: **the methodology scales**. Whether you are recommending a single program or a comprehensive policy package across ten sectors, the same analytical framework applies. Define the problem. Gather evidence. Construct alternatives. Evaluate. Recommend. Communicate.

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05

Legal Foundations and Compliance

Every policy recommendation you write must stand on legal ground. This chapter maps the legal landscape you work in and gives you the tools to verify that your recommendation is lawful — before it reaches a reviewer who will check.

5.1 Why Legal Compliance Comes First

A policy recommendation that proposes an action the government has no authority to take is worse than useless — it wastes the time of everyone who reads it and damages your credibility as an analyst. Legal compliance is not a box to check at the end. It is the first question you answer.

Before you analyze a problem, verify that the Bangsamoro government has authority over the subject. Before you construct alternatives, confirm that each alternative falls within the government's legal powers. Before you project costs, check that the funding mechanism you propose is legally available. If any part of your recommendation exceeds the government's authority, revise it or flag the limitation clearly.

5.2 The Constitutional Framework

The 1987 Constitution is the supreme law. Every BAA, every executive order, and every policy recommendation must be consistent with it. The constitutional provisions most relevant to Bangsamoro policy work include:

- **Article X (Local Government)** — establishes the framework for autonomous regions, including the provision for a Bangsamoro autonomous region.
- **Article X, Section 20** — grants autonomous regions legislative power over specific subjects, subject to constitutional limits.
- **Article VI (Legislative Department)** — reserves certain powers to Congress, including the power to amend the BOL and the power to increase the Parliament's membership.
- **Article III (Bill of Rights)** — every policy recommendation must respect individual rights, including due process, equal protection, freedom of speech, freedom of religion, and the right to property.

Practical impact: Your recommendation cannot create criminal penalties that violate due process. It cannot restrict speech or religion beyond what the Constitution allows. It cannot discriminate against any group on grounds the Constitution prohibits. If your recommendation touches any of these areas, consult with legal counsel before proceeding.

5.3 The Bangsamoro Organic Law

The BOL is the charter of the Bangsamoro. Think of it as the region's constitution. Every policy recommendation must comply with the BOL — not just in broad terms, but in specific provisions.

5.3.1 Enumerated Powers and Policy Authority

Article V, Section 2 of the BOL lists fifty-five enumerated powers. Chapter 2 of this guidebook already maps these powers to policy domains. When writing a recommendation, cite the specific enumerated power that authorizes the recommended action.

Example: A recommendation on madrasah education should cite BOL Article IX, Section 11, which grants the Bangsamoro government authority over "Madrasah education as part of the educational system."

If your recommendation does not fall neatly under an enumerated power, check whether: 1. The **general welfare clause** (Article V, Section 3) applies 2. The subject falls under a **concurrent power** shared with the national government 3. The subject is **reserved** to the national government — in which case you cannot recommend Bangsamoro government action on that subject

5.3.2 Fiscal and Budgetary Provisions

The BOL establishes the fiscal framework for the Bangsamoro government. Key provisions include:

- **Article XII, Section 1-3** — revenue powers, including the authority to create sources of revenue and levy taxes, fees, and charges.
- **Article XII, Section 8** — the **block grant**, an annual fiscal transfer from the national government. This is the Bangsamoro government's largest funding source.
- **Article XII, Section 11** — the **Special Development Fund (SDF)**, a ten-year fund for post-conflict rehabilitation and reconstruction.
- **Article XII, Section 17** — revenue sharing from natural resources, including mining and quarrying.

When your recommendation requires funding, verify that the proposed funding source is authorized by the BOL. A recommendation funded from the block grant must comply with BAA 84 (the Budget System Act). A recommendation funded from the SDF must demonstrate alignment with rehabilitation and reconstruction objectives.

5.3.3 Special Provisions for Marginalized Groups

The BOL includes specific provisions for marginalized and vulnerable groups that may constrain or enable your recommendation:

- **Article IX, Section 4** — rights of indigenous peoples to identity, ancestral land, and self-governance.
- **Article IX, Section 8** — protection of children's rights and welfare.
- **Article IX, Section 9** — women's rights and gender equality.
- **Article IX, Section 10** — rights of persons with disabilities.
- **Article IX, Section 17** — rights of the youth sector.
- **Article III, Sections 1-5** — Other Bangsamoro Communities, including their right to associate with the Bangsamoro and to access government services.

If your recommendation affects any of these groups, cite the relevant BOL provision and explain how your recommendation advances — or at minimum does not diminish — their rights.

5.4 Bangsamoro Autonomy Acts

5.4.1 Existing BAAs as Legal Baseline

As of early 2026, the Bangsamoro Parliament has enacted over 80 Bangsamoro Autonomy Acts covering subjects from the budget system to administrative organization, education, health, and environmental protection. These BAAs constitute the existing legal baseline for your policy work.

Before writing a recommendation, check whether a BAA already addresses your subject. If one exists:

- **Review it.** Does the BAA already provide the authority or mechanism your recommendation proposes?
- **Assess its implementation.** Has the BAA been implemented? Has an IRR been issued? Are there gaps between the law's provisions and actual practice?
- **Build on it.** Your recommendation should complement existing law, not contradict it. If the existing BAA is insufficient, your recommendation may propose amendments — but explain clearly what is insufficient and why.

5.4.2 Identifying Legislative Gaps

Some policy problems exist precisely because no BAA covers the subject. Identifying these gaps is a valuable contribution of policy analysis.

When you identify a legislative gap:

1. **Document it clearly.** Cite the BOL provision that grants authority over the subject and note the absence of implementing legislation.
2. **Assess whether legislation is needed.** Not every gap requires a BAA. Some can be addressed through executive action, administrative orders, or program design.
3. **If legislation is needed, say so.** Your recommendation should state clearly that the proposed policy requires a new BAA and describe the key provisions the legislation should contain. Your recommendation then becomes input for the Bill Drafting Guidebook's process.

5.5 National Laws

5.5.1 Applicability of National Laws in the Bangsamoro

The general rule under the BOL is that national laws continue to apply in the Bangsamoro unless:

- The subject is within the Bangsamoro's exclusive legislative authority **and** the Parliament has enacted a BAA on the subject
- The BOL itself provides otherwise

Practical example: The Philippines has a national cooperative law (Republic Act No. 9520). Cooperative development is within the Bangsamoro's enumerated powers (BOL Article V, Section 2). If the Parliament enacts a Bangsamoro Cooperative Code, that BAA governs cooperative development in the region — and RA 9520 no longer applies to the extent of any inconsistency. But until the Parliament enacts such a BAA, RA 9520 continues to apply.

5.5.2 Where Bangsamoro Authority Supersedes

When a BAA and a national law cover the same subject, the BAA prevails within the Bangsamoro — provided the BAA is within the enumerated powers and does not violate the Constitution. This is the essence of autonomy.

Check for potential conflicts early. A recommendation that assumes national law governs — when a BAA actually does — will propose the wrong implementing framework. A recommendation that assumes Bangsamoro authority — when the national government retains jurisdiction — will propose action the government cannot legally take.

5.6 Shari'ah Law

5.6.1 Personal and Family Law

The Code of Muslim Personal Laws (Presidential Decree No. 1083) governs personal status matters — marriage, divorce, custody, inheritance — for Filipino Muslims. The BOL grants the Bangsamoro government authority over the Shari'ah justice system and the power to enact legislation on matters covered by PD 1083.

If your recommendation touches personal status matters, verify compliance with both PD 1083 and any superseding BAA.

5.6.2 Shari'ah Banking and Finance

Republic Act No. 11439 (Islamic Banking Act of 2019) provides the national framework for Islamic banking and finance. The BOL grants the Bangsamoro government authority over "Islamic banking, finance, and insurance" (Article V, Section 2).

Policy recommendations on financial services — microfinance, cooperative banking, livelihood loans — should assess whether Shari'ah-compliant financial instruments are appropriate or required. This is particularly relevant for programs targeting Muslim communities.

5.6.3 When to Consult the Shari'ah Advisory Board

The BOL provides for a Shari'ah Advisory Council under the Bangsamoro justice system. When your policy recommendation raises questions about Shari'ah compliance — whether a proposed program is consistent with Islamic principles, whether a financial instrument is Shari'ah-compliant, whether a governance structure respects Islamic legal norms — consult the advisory body.

Do not attempt to resolve Shari'ah questions through your own analysis unless you have formal training in Islamic jurisprudence. Flag the question, note the need for consultation, and let the appropriate body provide guidance.

5.7 Avoiding Ultra Vires Recommendations

An **ultra vires** recommendation is one that proposes action beyond the government's legal authority. Ultra vires recommendations waste time, create legal risks, and undermine the credibility of the policy process.

Common ultra vires risks in BARMM policy work:

1. **Recommending action in a reserved area.** The national government retains exclusive authority over defense, foreign affairs, monetary policy, customs, and other reserved areas. A BARMM policy recommendation cannot propose action in these domains.
2. **Recommending spending without a legal funding source.** Proposing a program funded from the block grant when the block grant's use is restricted by the BOL and BAA 84. Proposing SDF expenditure for activities that do not qualify as rehabilitation and reconstruction.
3. **Recommending regulation of an activity outside the enumerated powers.** If the Bangsamoro government does not have legislative authority over a subject, it generally cannot regulate it through executive action either.
4. **Recommending action that conflicts with a Supreme Court ruling.** The Supreme Court has issued decisions affecting Bangsamoro legislative power, particularly on redistricting and territorial jurisdiction. Your recommendation must account for these rulings.
5. **Recommending action that violates individual rights.** The Bill of Rights applies everywhere in the Philippines, including the Bangsamoro. A recommendation that would restrict rights — even for a legitimate policy purpose — must satisfy constitutional standards.

Prevention: Before finalizing your recommendation, run it through the Legal Compliance Checklist in Section 5.8 below.

5.8 Legal Compliance Checklist

Use this checklist before submitting any policy recommendation for review:

No.	Item	Yes	No	N/A
1	Does the recommendation fall within the Bangsamoro government's enumerated powers (BOL Article V, Section 2)?			
2	If the subject is not enumerated, does the general welfare clause apply? Has this been justified in the document?			
3	Does the recommendation comply with the 1987 Constitution, including the Bill of Rights?			
4	Have relevant existing BAAs been identified and cited?			
5	Have applicable national laws been identified? Is it clear whether they apply or have been superseded?			
6	Does the recommendation respect concurrent powers and intergovernmental coordination requirements?			
7	Have Shari'ah considerations been identified and addressed where relevant?			
8	Does the proposed funding source exist and comply with fiscal provisions of the BOL and BAA 84?			
9	Does the recommendation account for relevant Supreme Court rulings?			
10	Have provisions for marginalized groups (indigenous peoples, women, youth, PWDs) been addressed where required by the BOL?			
11	If legislation is required, has this been clearly stated with the key provisions described?			
12	Has the recommendation been reviewed for ultra vires risks?			

Complete this checklist and attach it to your recommendation document. If any item receives a "No" answer, address the gap before submission — or note the limitation explicitly in your recommendation.

Building Legal Compliance into Your Workflow

Legal compliance should not be a final-stage check. Build it into every stage of your analysis:

During problem definition. Ask: does the Bangsamoro government have authority over this problem? If the answer is uncertain, consult the BOL's enumerated powers before investing time in a recommendation the government cannot legally act on.

During alternative construction. Ask: can the Bangsamoro government legally implement each alternative? An alternative that requires authority the government does not have is not a real alternative. Either remove it or note that it requires national-level action.

During budget analysis. Ask: is the proposed funding mechanism legally available for this purpose? Block grant funds, SDF funds, and IGR each have legal constraints on their use. Verify before you budget.

During stakeholder consultation. Ask: have you met the consultation requirements that the BOL and relevant BAAs impose? Skipping a required consultation creates a legal vulnerability — even if the substance of your recommendation is sound.

During drafting. Ask: does the language of your recommendation accurately reflect the legal framework? Cite provisions precisely. Do not paraphrase legal text when precision matters. If you quote the BOL, quote it verbatim.

The investment in legal compliance pays off throughout the approval chain. A recommendation that arrives at the legal reviewer's desk with a completed Legal Compliance Checklist — and no issues — moves through the chain faster than one that triggers a round of legal questions and revisions.

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06

Budgetary and Financial Analysis

A policy recommendation without a budget is a wish list. This chapter teaches you how to cost your recommendation, identify funding sources, and present financial analysis that decision-makers can evaluate and approve.

6.1 Why Every Policy Recommendation Needs a Budget Section

Decision-makers face a simple constraint: limited resources. The Bangsamoro government has real but finite fiscal capacity. Every program competes with every other program for the same pool of funds. When you recommend a new initiative, you are implicitly recommending that money be redirected from something else.

Your budget section answers three questions:

1. **How much does this cost?** Total cost, broken down by category and year.
2. **Where does the money come from?** Which specific funding source — block grant, SDF, internally generated revenue, external assistance — covers each cost line?
3. **Is this affordable?** Given the government's overall fiscal position, can this recommendation be funded without undermining other priorities?

A recommendation that answers these questions will be taken seriously. One that does not will be returned for revision — or ignored.

6.2 Understanding the BARMM Budget Framework

6.2.1 The Block Grant

The **block grant** is the Bangsamoro government's primary funding source. Article XII, Section 8 of the BOL establishes it:

> The Bangsamoro Government shall receive an annual block grant from the national government which shall be the share of the Bangsamoro Autonomous Region from the national internal revenue allotment.

The block grant formula is based on population, land area, and equal sharing — the same formula used for internal revenue allotment to other Philippine LGUs, but calculated at the regional level. The block grant funds the Bangsamoro government's annual budget, including personnel services, maintenance and operating expenses, and capital outlays.

What this means for your recommendation: If your recommendation is funded from the block grant, it competes directly with every other budget item in the annual General Appropriations Act. You must demonstrate that your proposed expenditure is a higher priority than the alternatives. Include a comparison with current spending in the same sector to show the relative magnitude of your proposal.

6.2.2 The Special Development Fund

The **Special Development Fund (SDF)** is a ten-year fund established by Article XII, Section 11 of the BOL for rehabilitation, reconstruction, and development in areas affected by conflict. The SDF receives an annual allocation from the national government.

Eligibility requirements: SDF-funded programs must be related to post-conflict rehabilitation and reconstruction. Not every program qualifies. If your recommendation proposes SDF funding, explicitly state how the program addresses conflict-related needs.

Time limitation: The SDF is a transition-period fund. Plan accordingly — programs initiated with SDF funding will need an alternative funding source when the SDF expires.

6.2.3 General Appropriations Act Allocations

Some programs in the Bangsamoro receive direct allocations from the national General Appropriations Act (GAA), separate from the block grant. These include:

- **National government agencies operating in the Bangsamoro** — agencies like the DSWD, DepEd, and DPWH maintain regional offices and programs that receive GAA funding
- **Special purpose funds** — the national GAA includes special funds for peace, development, and disaster response that may cover Bangsamoro programs
- **Congressional allocations** — Members of Congress representing areas that overlap with the Bangsamoro may include projects in their allocations

If your recommendation involves coordination with national government programs, identify the GAA line items that fund those programs. This helps decision-makers understand the full funding picture — not just the BARMM budget component.

6.2.4 Internally Generated Revenue

The Bangsamoro government generates revenue from taxes, fees, and charges within its authority. Article XII, Sections 1-3 of the BOL grant the Bangsamoro government the power to:

- Levy taxes, fees, and charges on subjects within its jurisdiction
- Impose property taxes on real property within the Bangsamoro
- Collect regulatory fees for services and permits

Internally generated revenue (IGR) supplements the block grant. If your recommendation proposes a new fee — a certification fee, a regulatory charge, a user fee for a government service — it creates a new IGR stream. Account for this in your budget analysis. Show the projected revenue and whether it is sufficient to sustain the program.

6.2.5 External Funding and Development Assistance

The Bangsamoro government receives development assistance from multiple international partners:

- **World Bank** — infrastructure, governance, and social protection programs
- **JICA** — infrastructure, capacity building, and agricultural development
- **USAID** — governance, peace-building, and economic development
- **UNDP** — governance strengthening and SDG-related programs

- **European Union** — governance and development programs
- **Islamic Development Bank (IsDB)** — infrastructure and Islamic finance programs

External funding has advantages — it supplements the government's own resources and often includes technical assistance. It also has constraints — donor requirements, reporting obligations, procurement rules, and project timelines that may not align with the government's own schedule.

If your recommendation proposes external funding, identify the specific program or partner and note any conditions attached to the funding.

6.3 BAA 84: The Bangsamoro Budget System Act

BAA 84 establishes the legal framework for budget preparation, submission, review, and execution in the Bangsamoro government. Your budget analysis must comply with BAA 84.

6.3.1 Budget Preparation and Submission

BAA 84 prescribes the budget cycle:

1. **Budget call** — The Ministry of Finance, Budget, and Management (MFBM) issues a budget call memorandum (typically a BBM) that sets the parameters for the coming fiscal year.
2. **Agency budget proposals** — Each ministry and agency prepares a budget proposal following the budget call guidelines.
3. **Budget review** — MFBM reviews agency proposals and prepares the recommended budget.
4. **Executive submission** — The Chief Minister submits the proposed budget to the Parliament.
5. **Parliamentary deliberation** — The Committee on Finance and the plenary review and deliberate on the proposed budget.
6. **Enactment** — The Parliament enacts the General Appropriations Act.

What this means for your recommendation: If your recommendation requires a new budget allocation, it must enter this cycle. A recommendation submitted in March for the next fiscal year must align with the budget call timeline. A recommendation submitted after the budget has been enacted may need to wait for the following fiscal year — unless a supplemental budget or realignment mechanism is available.

6.3.2 Programs, Projects, Activities, and Services

BAA 84 organizes government expenditure into **Programs, Projects, Activities, and Services (PPAS)**. Each budget item is classified as:

- **Tier 1 — Existing PPAS:** Programs already approved and funded in the current budget
- **Tier 2 — New and Expanded PPAS:** Programs being proposed for the first time or receiving expanded funding

Your recommendation should clearly identify whether it falls under Tier 1 (continuation or expansion of an existing program) or Tier 2 (a new program). Tier 2 proposals face higher scrutiny — they must demonstrate why new spending is justified when existing programs may not be fully funded.

6.3.3 Evaluation Criteria

BAA 84 and the budget call memorandum establish criteria for evaluating budget proposals. Common criteria include:

- **BDP alignment** — Does the program advance BDP targets?
- **Performance record** — Has the implementing agency demonstrated the ability to execute its budget? What is its absorption rate?
- **Cost-effectiveness** — How much output does each peso produce?
- **Equity** — Does the program serve underserved populations and geographic areas?
- **Sustainability** — Can the program be maintained in future fiscal years?

Address these criteria in your budget analysis. An MFBM reviewer will evaluate your recommendation against them.

6.4 Costing a Policy Recommendation

6.4.1 Direct Costs

Direct costs are the expenses directly attributable to your recommended program. They typically fall into three categories:

Personnel Services (PS). The cost of staff who will implement the program: - Salaries and wages (based on the Bangsamoro government compensation schedule) - Benefits and allowances - Contract of service personnel - Consultants

Maintenance and Other Operating Expenses (MOOE). The recurring costs of operations: - Travel and transportation - Supplies and materials - Training and capacity building - Communication and information dissemination - Utilities and rent (if new office space is needed) - Professional services

Capital Outlay (CO). One-time or long-term investments: - Equipment and vehicles - Information technology infrastructure - Building construction or renovation - Land acquisition (if applicable)

6.4.2 Indirect and Administrative Costs

Your program does not operate in isolation. It uses the implementing agency's existing infrastructure — offices, vehicles, IT systems, administrative staff. Estimate the indirect costs your program will impose on the agency.

Common indirect costs include:

- Administrative support staff time
- Use of existing facilities and equipment
- Overhead costs (utilities, maintenance)
- Management and supervision time

Some costing methodologies use a percentage add-on for indirect costs — typically 10-15% of direct costs. State your methodology clearly.

6.4.3 Multi-Year Cost Projections

Most policy recommendations require funding over multiple years. Present a multi-year cost projection:

Cost Category	Year 1	Year 2	Year 3	Total
Personnel Services				
MOOE				
Capital Outlay				
Total				

Year 1 typically includes one-time startup costs — procurement, hiring, training, facility setup — that make it more expensive than subsequent years.

Outer years should include inflation adjustments. Use the most recent inflation rate for the Bangsamoro as your base — PSA-BARMM publishes this quarterly. A common approach is to apply a 3-5% annual inflation factor to MOOE and PS, depending on recent trends.

6.5 Identifying Funding Sources

Match each cost line to a specific funding source. Do not simply say "to be funded from the BARMM budget." State which budget head, which funding mechanism, and which fiscal year.

Funding source mapping template:

Cost Item	Amount	Funding Source	Budget Head / Account
10 Field Staff (Year 1)	PHP 6,000,000	Block Grant — PS	[Ministry] — Personnel Services
Training Program	PHP 1,500,000	Block Grant — MOOE	[Ministry] — Training and Seminars
Vehicles (3 units)	PHP 4,500,000	SDF — Capital Outlay	[Ministry] — Motor Vehicles
Monitoring System	PHP 800,000	UNDP BARMM Governance Program	External — Technical Assistance

This level of specificity demonstrates that you understand the budget structure and have identified realistic funding paths.

6.6 Fiscal Feasibility Assessment

A recommendation may be well-designed but fiscally impossible. Your fiscal feasibility assessment answers: **can the government afford this?**

Assess fiscal feasibility by:

1. **Comparing to the current sector budget.** If the Ministry of Social Welfare's total budget is PHP 500 million and your recommendation costs PHP 100 million, you are proposing a 20% increase in the ministry's budget. That is a significant ask. Note it.
2. **Comparing to the overall BARMM budget.** What percentage of the total BARMM budget does your recommendation represent? A recommendation that costs 0.1% of the budget is more feasible than one that costs 5%.
3. **Assessing the absorption rate.** If the implementing agency only spent 60% of its budget last year, adding more money may not solve the problem. Your recommendation may need to address implementation capacity before proposing additional funding.
4. **Identifying competing priorities.** What other major programs compete for the same funding source? If the block grant is already fully programmed, where does your new allocation come from?
5. **Evaluating sustainability.** Can the government sustain this spending in Year 2 and beyond? One-time programs funded from the SDF are easier to justify than permanent programs that create recurring budget obligations.

6.7 Budget Tables and Financial Templates

Include the following tables in your recommendation's Implementation Structure section:

Table 1: Cost Summary by Category

Category	Year 1	Year 2	Year 3	Total
Personnel Services				
MOOE				
Capital Outlay				
Grand Total				

Table 2: Cost Summary by Activity

Activity	PS	MOOE	CO	Total
Program Management				
Service Delivery				
Training and Capacity Building				
Monitoring and Evaluation				
Total				

Table 3: Funding Source Mapping

Funding Source	Year 1	Year 2	Year 3	Total	% of Total
Block Grant					
SDF					
IGR					

Funding Source	Year 1	Year 2	Year 3	Total	% of Total
External Assistance					
Total					

These tables serve two audiences. For the decision-maker, they provide a quick overview of the financial commitment. For the MFBM reviewer, they provide the detail needed to evaluate the proposal against budget criteria.

Complete the tables with actual figures before submitting your recommendation. Empty templates signal that you have not done the costing work.

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07

Stakeholder Consultation and Validation

A policy recommendation built on desk research alone will miss something. This chapter covers the consultation protocols, engagement methods, and documentation practices that ensure your recommendation reflects the perspectives of the people it affects.

7.1 Why Consultation Is Not Optional

Consultation serves three purposes:

Legitimacy. A recommendation validated by stakeholders carries more weight than one produced in isolation. When you present a recommendation that includes feedback from affected communities, implementing agencies, and subject-matter experts, decision-makers trust it more — because they know it has been tested against reality.

Quality. Stakeholders know things you do not. A community leader in Tawi-Tawi can tell you whether a proposed fisheries program will work in practice — because she knows the fishing patterns, the seasonal constraints, and the barriers that government data does not capture. An implementing agency official can tell you whether your proposed timeline is realistic — because he knows the procurement cycle and the staffing limitations. Consultation improves your analysis.

Compliance. The BOL and several BAAs include consultation requirements. Policies affecting indigenous peoples must include consultation with indigenous communities. Policies affecting women must incorporate gender analysis and women's participation. Policies affecting youth must include youth sector input. Skipping consultation where it is legally required makes your recommendation vulnerable to challenge.

7.2 Consultation Protocols in BARMM

7.2.1 Executive-Legislative Consultation

The Bangsamoro parliamentary system fuses executive and legislative power. Policy recommendations that originate from a ministry often require legislative action — a new BAA, a budget allocation, or a resolution. Consultation between the executive and the Parliament is built into the system.

How it works in practice:

- **Cabinet-level review.** Policy recommendations from ministries go through the Cabinet process. The Chief Minister and relevant ministers review and endorse — or return — the recommendation.
- **Committee engagement.** Once a recommendation is endorsed by the Cabinet, it may be transmitted to the Parliament's relevant committee — either as a proposed bill or as an executive communication. The committee reviews, holds hearings, and may amend the proposal.
- **Informal coordination.** Much consultation happens informally. A minister who is also an MP discusses policy proposals with colleagues during sessions. A legislative staff officer calls a ministry contact to clarify a budget figure. Encourage these informal channels — they accelerate the process.

7.2.2 Interagency Coordination

Most policy recommendations cut across multiple ministries and agencies. A recommendation on youth employment involves the Ministry of Labor, the Ministry of Social Welfare, the Ministry of Education, and possibly the BARMM's TESDA counterpart. Coordination between these agencies must happen during the recommendation process, not after.

Coordination mechanisms:

- **Inter-ministry technical working groups (TWGs).** Convene a TWG of focal persons from each relevant agency. Give the TWG a clear mandate — review the recommendation, identify overlaps, resolve conflicts.
- **Joint consultations.** When two or more agencies implement related programs, hold a joint consultation with stakeholders. This prevents confusion and demonstrates a whole-of-government approach.

- **Memoranda of agreement (MOAs).** If your recommendation requires sustained coordination between agencies, propose an MOA that formalizes roles, responsibilities, and resource-sharing arrangements.

7.2.3 LGU Coordination

The Bangsamoro government shares governance responsibilities with provincial, city, and municipal governments. Many policy recommendations require LGU participation for implementation — LGUs manage barangays, collect local taxes, and deliver front-line services.

When to engage LGUs:

- Your recommendation affects service delivery at the local level
- Your recommendation requires co-funding from LGU budgets
- Your recommendation creates new obligations for LGU officials
- Your recommendation changes the relationship between the Bangsamoro government and LGUs

How to engage LGUs:

- **Provincial governors and city mayors.** Engage executive leadership for policies that affect province-wide or city-wide governance.
- **Municipal planning and development officers (MPDOs).** Engage technical staff for planning and coordination details.
- **League of Municipalities and League of Provinces.** Engage the leagues when your recommendation affects all or most LGUs in the region.

7.3 Community Engagement

7.3.1 Public Hearings and Forums

Public hearings are formal consultation events where stakeholders present their views on a proposed policy. They are appropriate when:

- The policy affects a broad population across the region
- The Parliament's committee process requires a public hearing
- You need to document public support or opposition for the policy record

Planning a public hearing:

1. **Provide advance notice.** Distribute the consultation materials — problem statement, proposed recommendation, key questions — at least two weeks before the hearing.
2. **Select accessible venues.** Choose locations that participants can reach. For region-wide policies, hold hearings in multiple provinces.
3. **Ensure representation.** Invite stakeholders from all affected groups — government, civil society, private sector, communities, marginalized sectors.
4. **Document everything.** Record attendance, presentations, questions, responses, and commitments. This documentation becomes an annex to your recommendation.

7.3.2 Barangay-Level Consultations

For policies that affect specific communities — livelihood programs, infrastructure projects, social services — barangay-level consultations provide the most direct input from beneficiaries.

Design principles for barangay consultations:

- **Use the local language.** Materials and discussions in Filipino or English may exclude participants whose primary language is Tausug, Maguindanaon, Maranao, Sama, or Yakan. Translate key documents and use local-language facilitators.
- **Respect local timing.** Schedule consultations around prayer times, market days, and agricultural schedules. A consultation that conflicts with Jumu'ah (Friday prayer) will have low attendance.
- **Engage local leaders.** Coordinate with the barangay captain and community leaders. Their endorsement of the consultation process encourages participation.

- **Create safe spaces.** Some community members — particularly women and youth — may not speak freely in mixed or large-group settings. Offer breakout sessions or separate consultations.

7.3.3 Women, Youth, and Marginalized Groups

The BOL mandates attention to the rights and participation of women, youth, indigenous peoples, and persons with disabilities. Your consultation process must include mechanisms for hearing from these groups.

Practical approaches:

- **Women-only sessions.** In some communities, women are more likely to participate and speak openly in women-only settings. Include at least one women-focused consultation in your process.
- **Youth forums.** Design youth consultations differently. Young people respond better to interactive formats — workshops, problem-solving exercises, small-group discussions — than to formal hearings.
- **Accessibility.** Ensure consultation venues are accessible to persons with disabilities. Provide materials in formats they can use.
- **Indigenous community consultations.** Follow the protocols of the indigenous community. Engage through traditional leaders. Respect customary decision-making processes.

7.4 Other Bangsamoro Communities (OBCs)

7.4.1 Who Are the OBCs

Article III of the BOL defines Other Bangsamoro Communities as communities outside the Bangsamoro geographic area that wish to be associated with the Bangsamoro. These communities are spread across Zamboanga Peninsula, Northern Mindanao, SOCCSKSARGEN, and the Davao Region.

OBCs occupy a unique position in Bangsamoro governance. They are Bangsamoro by identity but outside the Bangsamoro territory by geography. Policy recommendations that affect OBCs must navigate this dual reality.

7.4.2 Consultation Protocols for OBC-Specific Policy

Consulting with OBC communities requires additional effort because they are geographically dispersed and often lack institutional connections to the BARMM government. Your consultation process should:

1. **Identify OBC communities in the affected area.** Use the BOL definitions, previous OBC registrations, and community organization networks to locate communities.
2. **Engage OBC leaders and organizations.** Many OBC communities have organized associations that can serve as consultation counterparts. Engage these organizations early.
3. **Conduct on-site consultations.** Do not expect OBC community members to travel to Cotabato City for a hearing. Go to them. Budget for travel to OBC communities in Zamboanga, Cagayan de Oro, Davao, or wherever the affected population lives.
4. **Document the BOL basis for OBC inclusion.** Your recommendation should cite Article III and explain why the recommendation covers communities outside the geographic area.

7.4.3 Lessons from the OOBC Policy Recommendations

The ten OOBC Policy Recommendations produced under the Bardach methodology offer practical lessons on consulting with OBC communities:

- **Multi-site consultation works.** Consultations in multiple regions — rather than a single centralized event — produced richer input and broader validation.

- **OBC-specific data is scarce.** Most government datasets do not disaggregate by OBC status. Your analysis may need to generate primary data through surveys or community profiling.
- **Coordination with non-BARMM LGUs is essential.** OBC communities live in LGUs outside the Bangsamoro. Your implementation plan must account for the need to coordinate with these LGUs — which are outside the Bangsamoro government's authority.
- **Representation matters.** OBC stakeholders who participated in the consultation process became advocates for the recommendations. Consultation was not just input-gathering — it was constituency-building.

7.5 Interagency Coordination

7.5.1 The Intergovernmental Relations Body

The BOL establishes the **Intergovernmental Relations Body (IGRB)** as the primary mechanism for coordinating between the Bangsamoro government and the national government. The IGRB addresses:

- Disputes between the Bangsamoro government and national government agencies
- Coordination on concurrent powers
- Implementation of the BOL and the peace agreements

If your recommendation involves an area where national and Bangsamoro authority overlap — environmental standards, disaster response, public health emergencies — the IGRB is the coordination venue. Reference the IGRB in your recommendation and explain how coordination will work.

7.5.2 Coordination with National Government Agencies

Many policy recommendations require coordination with national government agencies (NGAs) operating in the Bangsamoro. Common coordination scenarios include:

- **Social protection programs.** DSWD's 4Ps program operates in the Bangsamoro alongside BARMM's own social welfare programs.
- **Education.** DepEd and SUCs operate alongside the MBHTE in the region.
- **Infrastructure.** DPWH national roads and bridges coexist with BARMM public works.
- **Agriculture.** DA national programs operate alongside BARMM agriculture programs.

Your recommendation should identify which NGAs are active in your policy area, describe the current coordination arrangements, and propose improvements if coordination gaps exist.

7.6 Documenting Consultation Results

Consultation is only as valuable as your documentation of it. A well-documented consultation record shows the decision-maker that real people were heard and their input was considered.

Documentation requirements for each consultation event:

1. **Attendance list.** Names, organizations, and contact information of participants. (Observe data privacy requirements — informed consent for recording personal information.)
2. **Minutes or summary.** Key points raised, questions asked, and responses given. Do not attempt a verbatim transcript unless the event is a formal parliamentary hearing.
3. **Key findings.** Synthesize the consultation input into three to five key findings that are relevant to your recommendation.
4. **Action items.** If the consultation generated commitments or follow-up tasks, list them with responsible persons and deadlines.
5. **Photographs.** Visual documentation of the event. Useful for reports and presentations. Obtain consent before photographing.

Compile your consultation documentation as an annex to your recommendation. Label each event clearly — date, location, participants, and type of consultation.

7.7 Integrating Feedback into the Recommendation

Consultation that does not change anything is theater. When stakeholders provide substantive feedback, integrate it into your recommendation. When you cannot incorporate their feedback, explain why.

Integration checklist:

- ☐ Have you revised your problem statement based on what stakeholders told you about the problem?
- ☐ Have you adjusted your alternatives based on implementation concerns raised by agencies?
- ☐ Have you modified your budget based on costing feedback from implementing agencies?
- ☐ Have you added safeguards or mitigation measures based on concerns raised by communities?
- ☐ Have you noted — in the recommendation document — which feedback you received and how you addressed it?

The decision-maker should be able to see, in your final recommendation, that stakeholder input shaped the analysis. Include a section — even a brief one — titled "Stakeholder Consultation Summary" that lists who was consulted, what they said, and what you did with their input.

Planning Your Consultation Timeline

Consultation takes time. Budget for it from the start of your analysis — do not treat it as something you squeeze in at the end.

Recommended timeline for a standard policy recommendation:

Activity	Week	Duration
Stakeholder mapping and identification	Week 1	2-3 days
Consultation design (questions, format, logistics)	Week 2	2-3 days
Advance distribution of consultation materials	Week 2-3	2 weeks before event

Activity	Week	Duration
Government agency consultations	Week 3-4	3-5 meetings
Community consultations	Week 4-6	2-4 events
Specialized group consultations (women, youth, IPs)	Week 5-7	1-3 events
Documentation and synthesis	Week 7-8	3-5 days
Integration into recommendation draft	Week 8-9	2-3 days

For a region-wide policy affecting multiple provinces, add two to three weeks. For an OBC-specific policy requiring travel outside the Bangsamoro, add three to four weeks.

Common consultation mistakes to avoid:

- **Consulting too late.** If you consult after your recommendation is already written, you are not really consulting — you are seeking validation. Consult early enough that the feedback can shape your analysis.
- **Consulting the wrong people.** Subject-matter experts are valuable, but they are not substitutes for the communities your recommendation affects. Both perspectives are needed.
- **Conducting one consultation and calling it done.** A single event in Cotabato City does not represent the views of communities in Sulu, Tawi-Tawi, or the Special Geographic Area. Match your consultation footprint to the geographic scope of your recommendation.
- **Failing to close the loop.** If stakeholders gave you feedback, tell them what you did with it. This builds trust for future consultations. A stakeholder who feels heard once will participate again. A stakeholder who feels ignored will not.

The Consultation Summary Section

Your recommendation document should include a "Stakeholder Consultation Summary" — either as a section within the Context and Rationale or as an annex. Structure it as follows:

Consultation events conducted:

No.	Date	Location	Type	Participants	Key Findings
1			KII / FGD / Public Hearing / Workshop	Number and composition	2-3 bullet points
2					
3					

Summary of key feedback themes: 1. [Theme 1 — what stakeholders said, across multiple consultations] 2. [Theme 2] 3. [Theme 3]

How feedback was integrated: - [Describe specific changes made to the recommendation based on stakeholder input]

This summary demonstrates that consultation was genuine, structured, and consequential. It is one of the strongest signals of quality in a policy recommendation.

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08

Quality Review and Approval

A good recommendation survives scrutiny. This chapter covers the review process that turns your draft into a document ready for the decision-maker's desk — from self-review through peer review, technical clearance, and formal transmittal.

8.1 The Quality Review Process

Quality review happens in four stages:

1. **Self-review.** You check your own work against a structured checklist before anyone else sees it.
2. **Peer review.** A colleague with relevant expertise reads and critiques the recommendation.
3. **Technical review chain.** The recommendation passes through legal, budget, and policy reviewers who assess compliance and feasibility.
4. **Executive approval.** The authorized official — a Minister, the Chief Minister, or an MP — approves the recommendation for action.

Each stage catches different types of problems. Self-review catches errors of fact, logic, and completeness. Peer review catches blind spots and weak arguments. Technical review catches legal, fiscal, and procedural issues. Executive approval ensures political alignment and institutional commitment.

Skip any stage and you increase the risk that a fixable problem becomes a public embarrassment.

8.2 The Self-Review Checklist

Before sharing your draft with anyone, review it yourself against the following checklist. This takes 30-60 minutes. It will save you days of revision.

8.2.1 Problem Definition

- ☐ Is the problem stated in specific, measurable terms?
- ☐ Does the problem statement focus on the affected population, not on the absence of a program?
- ☐ Is the problem within the Bangsamoro government's authority to address?
- ☐ Have you cited the source for every data point in the problem statement?

8.2.2 Evidence Base

- ☐ Does every factual claim have a cited source?
- ☐ Are your sources current? Have you noted the date of each data point?
- ☐ Have you included evidence that both supports and challenges your recommendation?
- ☐ Is your evidence registry complete and attached as an annex?

8.2.3 Legal Compliance

- ☐ Have you completed the Legal Compliance Checklist from Chapter 5?
- ☐ Have you cited the specific BOL provision that authorizes the recommended action?
- ☐ Have you identified and addressed relevant BAAs and national laws?
- ☐ Have you flagged any ultra vires risks?

8.2.4 Budget Feasibility

- ☐ Have you costed every element of your recommendation?
- ☐ Have you identified a specific funding source for each cost line?
- ☐ Have you presented multi-year cost projections?
- ☐ Have you assessed fiscal feasibility against the current BARMM budget?

- ☐ Are your budget tables complete — not templates, but actual figures?

8.2.5 Stakeholder Validation

- ☐ Have you consulted the stakeholders most affected by the recommendation?
- ☐ Have you documented your consultations and attached the documentation?
- ☐ Have you integrated stakeholder feedback into your analysis?
- ☐ Have you addressed consultation requirements for marginalized groups (where applicable)?

8.2.6 Implementation Readiness

- ☐ Have you identified the implementing agency and assigned clear responsibilities?
- ☐ Have you described the activities, timeline, and milestones?
- ☐ Have you assessed the implementing agency's capacity to deliver?
- ☐ Have you identified the top risks and proposed mitigation measures?
- ☐ Have you described the monitoring and evaluation plan?

If any item receives a "No," address it before requesting peer review. A draft that fails its own self-review will not survive external scrutiny.

8.3 Peer Review

8.3.1 Selecting Peer Reviewers

Choose peer reviewers who bring expertise you lack. If you are a sector specialist, ask a budget analyst to review your fiscal analysis. If you are a generalist, ask a sector expert to review your technical content. If you are confident in your analysis but uncertain about your writing, ask a colleague who writes clearly.

Ideal reviewers bring:

- **Subject-matter expertise** — they know the policy area and can assess whether your analysis is accurate
- **Institutional knowledge** — they understand the BARMM government's processes, politics, and constraints
- **Willingness to be candid** — a reviewer who says "looks good" without reading carefully is not helping you

Select two reviewers if time allows. Different perspectives strengthen the review.

8.3.2 Structured Review Feedback

Ask your reviewers to answer specific questions — not just "any comments." Structure their feedback:

1. **Is the problem clearly defined?** Would someone unfamiliar with the issue understand what the problem is and why it matters?
2. **Is the evidence persuasive?** Are there gaps, outdated sources, or unsupported claims?
3. **Are the alternatives genuinely different?** Or are they variations of the same approach?
4. **Is the recommended alternative convincingly justified?** Does the analysis support the recommendation over the other options?
5. **Is the budget realistic?** Are costs reasonable? Are funding sources identified?
6. **Is the implementation plan practical?** Could an implementing agency begin work based on this document?

7. **Is the document well-organized and clearly written?** Can the reader follow the logic from problem to recommendation?

8.3.3 Resolving Reviewer Comments

You will not agree with every comment. That is fine. The standard is not consensus — it is quality. When you receive a comment:

- **If the reviewer found an error, fix it.** Missing sources, incorrect figures, legal misstatements — these are non-negotiable corrections.
- **If the reviewer disagrees with your analysis, consider the disagreement carefully.** If the reviewer has evidence or reasoning you did not consider, revise your analysis. If you considered it and still disagree, note the disagreement in your document — transparency about contested points strengthens your credibility.
- **If the reviewer suggests restructuring, evaluate the suggestion against the four-section template.** The template is your organizing structure. Depart from it only if there is a compelling reason.

Document reviewer comments and your responses in a simple table. This shows the approval chain that the recommendation went through a rigorous review.

No.	Reviewer	Comment	Response / Action
1			
2			
3			

8.4 The Approval Chain

After self-review and peer review, your recommendation enters the formal approval chain. The exact chain depends on who originated the recommendation and who will act on it.

8.4.1 Technical Review

The first formal review is technical — conducted by the unit or office responsible for quality assurance in the originating agency.

- **In a ministry:** The Planning Division or Policy Unit reviews for alignment with the ministry's strategic plan and the BDP.
- **In a parliamentary office:** The Legislative Chief reviews for completeness and consistency with the MP's legislative agenda.
- **In a project management office:** The project director reviews for alignment with project scope and donor requirements.

The technical reviewer checks that the recommendation meets the standards of this guidebook — problem definition, evidence base, legal compliance, budget analysis, stakeholder consultation, and implementation readiness.

8.4.2 Legal Review

The legal unit or office reviews the recommendation for legal compliance:

- Does the recommendation fall within the BOL's grant of authority?
- Does it conflict with existing BAAs or national laws?
- Does it require legislation? If so, has the legislative path been identified?
- Does it create legal risks — liability, constitutional challenges, or enforcement gaps?

The legal reviewer may clear the recommendation, return it for revision, or flag issues for the decision-maker's attention.

8.4.3 Budget Review

The budget unit — or the MFBM for major policy proposals — reviews the financial analysis:

- Are costs accurately estimated?
- Are funding sources correctly identified and legally available?
- Does the recommendation comply with BAA 84 requirements?
- Is the proposal fiscally sustainable over the projected period?

The budget reviewer may approve the financial analysis, request adjustments, or flag fiscal constraints that the decision-maker needs to consider.

8.4.4 Executive Approval

The final step is executive approval — the authorized official reviews the recommendation and decides:

- **Approve.** The recommendation is accepted. Proceed to implementation planning.
- **Approve with modifications.** The official accepts the recommendation with specific changes. Incorporate the changes and update the document.
- **Defer.** The official accepts the analysis but delays action — perhaps until the next budget cycle, until a political condition is met, or until additional information is available.
- **Return for revision.** The official identifies significant problems and sends the recommendation back for further work. This is not failure — it is the review process working.

Document the decision and attach the approval documentation — a signed endorsement, a memorandum of approval, or meeting minutes — to the recommendation file.

8.5 Transmittal

8.5.1 Preparing the Transmittal Memorandum

Once approved, transmit the recommendation to the implementing agency, parliamentary committee, or other recipient. The transmittal memorandum should include:

- **From:** The originating office and official
- **To:** The receiving office and official
- **Date:** Transmittal date
- **Subject:** Title of the policy recommendation
- **Action requested:** What the recipient should do — review, implement, endorse, fund
- **Attachments:** The full recommendation document and all annexes

The transmittal memorandum is brief — one page. It points to the attached recommendation for the full analysis.

8.5.2 Supporting Annexes

Attach the following to your recommendation:

1. **Evidence registry** — your evidence trail (Chapter 3, Section 3.6)
2. **Legal Compliance Checklist** — completed and signed (Chapter 5, Section 5.8)
3. **Budget tables** — completed with actual figures (Chapter 6, Section 6.7)
4. **Stakeholder consultation documentation** — attendance lists, minutes, key findings (Chapter 7, Section 7.6)
5. **Peer review comments and responses** — the review table from Section 8.3.3 above
6. **Quality Review Checklist** — completed (Section 8.6 below)

8.5.3 Distribution and Filing

Distribute the approved recommendation to all relevant parties:

- The implementing agency or agencies
- The budget unit (for resource allocation)
- The legal unit (for reference and monitoring)

- The Parliament's relevant committee (if legislative action is needed)
- The BPDA (for BDP alignment tracking)

File the original document — with all annexes, review comments, and approval documentation — in the originating office's records. This file is the institutional memory of the recommendation. Future analysts working on the same topic will need it.

8.6 Quality Review Checklist Template

Use this comprehensive checklist before transmitting any policy recommendation:

No.	Review Area	Item	Status
	Document Structure		
1		Executive summary present and under 500 words	☐
2		Four sections complete (Context, Policy Framework, Implementation, Management)	☐
3		All tables completed with actual figures	☐
	Problem Definition		
4		Problem is specific and measurable	☐
5		Problem is within BARMM authority	☐
6		All data points cited with sources	☐
	Evidence Base		
7		Evidence registry attached	☐
8		Sources are current (dated within 3 years unless historical)	☐
9		Counter-evidence addressed	☐
	Policy Analysis		
10		At least three alternatives evaluated (including status quo)	☐
11		Evaluation criteria stated and justified	☐
12		Comparison matrix included	☐
13		Recommendation clearly stated with rationale	☐

No.	Review Area	Item	Status
	Legal Compliance		
14		Legal Compliance Checklist completed (Chapter 5)	☐
15		BOL authority cited	☐
16		No ultra vires risks identified	☐
	Budget		
17		Costs estimated by PS/MOOE/CO	☐
18		Funding sources identified for each cost line	☐
19		Multi-year projections included	☐
20		Fiscal feasibility assessed	☐
	Stakeholder Consultation		
21		Key stakeholders consulted	☐
22		Consultation documented	☐
23		Feedback integrated into recommendation	☐
	Implementation		
24		Implementing agency identified with clear roles	☐
25		Timeline and milestones defined	☐
26		Risks identified with mitigation measures	☐
	Monitoring and Evaluation		
27		KPIs defined	☐
28		Reporting frequency and format specified	☐
29		Evaluation schedule set	☐

No.	Review Area	Item	Status
	Review		
30		Self-review completed	☐
31		Peer review completed with documented responses	☐
32		Technical, legal, and budget reviews completed	☐

Reviewed by: ____ *Date:* ____

Approved by: ____ *Date:* ____

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09

From Recommendation to Action

An approved recommendation that sits in a file is not policy. It is paper. This chapter covers what happens after the decision-maker signs — how to translate recommendations into work plans, monitor implementation, evaluate results, and feed lessons back into the next policy cycle.

9.1 What Happens After Approval

The approval of a policy recommendation triggers a series of actions:

1. **Transmittal to implementing agencies.** The approved recommendation is sent to the ministry, office, or body responsible for implementation.
2. **Implementation planning.** The implementing agency translates the recommendation into a detailed work plan with activities, budgets, and timelines.
3. **Budget processing.** If the recommendation requires new funding, the budget proposal enters the BARMM budget cycle (see Chapter 6, Section 6.3).
4. **Legislative processing.** If the recommendation requires a new BAA, the proposal enters the legislative process (see the Bill Drafting Guidebook).
5. **Executive action.** If the recommendation can be implemented through executive authority — an administrative order, a program directive, or an institutional reform — the Chief Minister or the relevant Minister issues the necessary directive.

Your role as the policy analyst does not end at approval. Stay engaged through implementation. The people who understand the analysis best are best positioned to support the people who must carry it out.

9.2 Implementation Planning

9.2.1 Translating Recommendations into Work Plans

Your recommendation's Implementation Structure section (Chapter 4, Section 4.2.3) provides the blueprint. The implementing agency converts that blueprint into an operational work plan.

A work plan adds the detail your recommendation could not include:

- **Specific staff assignments** — who, by name and position, is responsible for each activity
- **Procurement schedules** — what needs to be purchased, when, and through which procurement mode
- **Coordination schedules** — meeting dates, reporting deadlines, and coordination milestones
- **Detailed budgets** — line-item budgets tied to the agency's financial management system

Your role in work plan development: Provide technical support to the implementing agency. Participate in the planning meetings. Ensure the work plan faithfully translates your recommendation — that it does not water down the objectives, skip the consultation requirements, or underfund critical activities.

9.2.2 Assigning Implementing Agencies

Some recommendations are implemented by a single agency. Others require multi-agency coordination. When multiple agencies are involved, clarity about roles prevents duplication and gaps.

For each activity in the work plan, specify:

Activity	Lead Agency	Support Agencies	Deliverable	Timeline
Program design	Ministry of X	BPDA, MFBM	Program design document	Month 1-2
Staff recruitment		CSC		Month 2-4

Activity	Lead Agency	Support Agencies	Deliverable	Timeline
	Ministry of X		Staff hired and deployed	
Community consultations	Ministry of X	LGUs, CSOs	Consultation reports	Month 3-5
Service delivery	Ministry of X	LGUs	Services provided to beneficiaries	Month 6-ongoing
M&E	BPDA	Ministry of X	Quarterly monitoring reports	Quarterly

The **lead agency** has primary responsibility and accountability. **Support agencies** contribute specific inputs. This distinction matters — when something goes wrong, the lead agency cannot pass responsibility to a support agency.

9.2.3 Setting Milestones and Timelines

Break implementation into phases with clear milestones:

Phase 1 — Pre-Implementation (Months 1-3) - Formal designation of implementing team - Work plan approved and signed - Budget allocated and released - Procurement initiated for goods and services - Coordination mechanism established

Phase 2 — Initial Implementation (Months 4-8) - Staff deployed - Pilot activities launched (if applicable) - First round of service delivery - Baseline data collected - First monitoring report submitted

Phase 3 — Full Operation (Months 9-ongoing) - All program components operational - Regular service delivery - Quarterly monitoring reports - Mid-term evaluation (if multi-year) - Annual performance review

Each milestone should be binary — either it has been achieved or it has not. “Progress on procurement” is not a milestone. “Three vehicles procured and delivered to field offices” is a milestone.

9.3 Monitoring and Evaluation

9.3.1 Developing a Monitoring Framework

Monitoring tracks whether the implementation is on track. Evaluation assesses whether the policy achieved its intended outcomes. Both are essential.

Your monitoring framework should answer four questions:

1. **What are we measuring?** (Indicators)
2. **How are we measuring it?** (Data collection methods)
3. **How often are we measuring?** (Frequency)
4. **Who is measuring?** (Responsible unit)

Monitoring framework template:

Indicator	Data Source	Collection Method	Frequency	Responsible Unit	Target
Number of beneficiaries served	Program records	Administrative data	Monthly	Implementing agency	X per year
Budget execution rate	MFBM reports	Financial system	Quarterly	Budget unit	90%
Stakeholder satisfaction	Beneficiary survey	Sample survey	Semi-annual	M&E unit	80% satisfactory
Completion rate of activities	Work plan tracker	Activity monitoring	Monthly	Project manager	100% by Year 1 end

9.3.2 Key Performance Indicators

Select KPIs that are directly linked to your recommendation's objectives. Good KPIs are:

- **Specific.** They measure one thing clearly.
- **Measurable.** They can be quantified or verified.
- **Achievable.** The target can be reached within the implementation period.

- **Relevant.** They connect directly to the policy objective.
- **Time-bound.** They have a deadline.

Input indicators measure what goes in — budget spent, staff deployed, training sessions conducted.

Output indicators measure what comes out — beneficiaries served, facilities built, permits issued.

Outcome indicators measure what changes — enrollment rates, income levels, disease prevalence.

A good monitoring framework includes all three types. Input indicators tell you whether the implementation is moving. Output indicators tell you whether the implementation is producing. Outcome indicators tell you whether the policy is working.

9.3.3 Reporting Frequency and Format

Establish a reporting schedule at the start of implementation:

Report Type	Frequency	Author	Recipient	Content
Progress update	Monthly	Project manager	Division chief	Activity status, issues, next steps
Monitoring report	Quarterly	M&E unit	Minister / Director	KPI tracking, variance analysis, recommendations
Financial report	Quarterly	Budget unit	MFBM	Budget execution, obligations, disbursements
Annual performance report	Annually	Implementing agency	Parliament / BPDA	Full-year results, analysis, lessons
Evaluation report	Mid-term and end-term	Independent evaluator or M&E unit	Decision-maker	Impact assessment, recommendations

Keep reports concise. A monthly progress update should be one to two pages. A quarterly monitoring report should be three to five pages plus annexes. An annual performance report can be longer, but the executive summary should still fit on one page.

9.4 Feedback Loops

9.4.1 Tracking Implementation Progress

A feedback loop connects monitoring data to decision-making. When monitoring shows the implementation is off track, the loop triggers a response — a management decision, a resource reallocation, or a policy revision.

Establish a regular review mechanism:

- **Monthly management review.** The project manager reviews progress data with the implementing team. Identify problems early. Adjust timelines and resource allocation within the team's authority.
- **Quarterly strategic review.** The division chief or director reviews the quarterly monitoring report. Decide whether the program needs additional resources, modified targets, or escalation to the Minister.
- **Annual policy review.** The Minister or decision-maker reviews the annual performance report. Decide whether the policy should continue, be modified, be expanded, or be discontinued.

9.4.2 Identifying and Escalating Bottlenecks

Bottlenecks are predictable. The most common in BARMM implementation are:

Bottleneck	Typical Cause	Escalation Action
Delayed budget release	Late budget enactment or slow fund release by MFBM	Escalate to MFBM through the Minister
Procurement delays	Complex procurement requirements, limited suppliers	Simplify procurement mode or request emergency procurement authority
Staff shortages	Slow CSC processing, difficulty attracting qualified staff	Propose contractual hiring as stopgap; escalate HR issues to HR unit
LGU non-cooperation	LGU capacity constraints, political misalignment	Engage LGU executives directly; escalate through the MILG if needed

Bottleneck	Typical Cause	Escalation Action
Data gaps	Lack of monitoring systems, incomplete records	Deploy M&E support; simplify data collection instruments

When a bottleneck threatens the program's objectives, do not wait for the quarterly review. Escalate immediately to the next level of authority with a brief memo: what the bottleneck is, what caused it, what you have already tried, and what you need from the decision-maker.

9.4.3 Revising Recommendations Based on Results

The strongest evidence for policy revision comes from implementation itself. When monitoring data shows that a program is not producing the expected results — or is producing unexpected results, positive or negative — the policy analyst has a responsibility to propose revisions.

When to revise:

- Outcome indicators consistently miss targets for two or more quarters
- Implementation costs significantly exceed projections (more than 20% overrun)
- External conditions change materially — new legislation, budget cuts, natural disaster, security situation
- Stakeholders report that the program is not meeting their needs

How to revise:

1. Document the findings that trigger the revision. Use monitoring data, field reports, and stakeholder feedback.
2. Analyze the root cause of the underperformance or changed conditions.
3. Propose revised objectives, activities, or resource allocation — following the same four-section template as the original recommendation.
4. Submit the revision through the same approval chain as the original.

A revision is not a failure of the original recommendation. It is the policy cycle working as designed. Stage 6 (Evaluation) feeds back into Stage 1 (Problem Identification) — and sometimes that feedback arrives during implementation rather than after it.

9.5 Lessons Learned and Knowledge Management

Every policy recommendation — whether it succeeds brilliantly, fails instructively, or lands somewhere in between — generates knowledge that the government should capture and use.

At the end of each implementation period, produce a Lessons Learned document:

1. **What worked well?** Which elements of the recommendation and the implementation plan produced the expected results? What can be replicated?
2. **What did not work?** Which elements underperformed? What were the root causes?
3. **What was unexpected?** Were there positive or negative outcomes that the analysis did not anticipate?
4. **What would you do differently?** If you were writing the recommendation again, what would you change?
5. **What should the next analyst know?** What practical knowledge — about the sector, the implementing agency, the community, the budget process — would help the next person working on this topic?

File the Lessons Learned document alongside the original recommendation and the evaluation report. Share it with the BPDA, the relevant ministry, and the Parliament's committee. Institutional memory is built one document at a time.

9.6 The Recommendation Lifecycle Flowchart

The following diagram shows the complete lifecycle of a policy recommendation — from drafting through approval, implementation, and evaluation:

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┌──────────────────────────────────────────────────┐
│                                                  │
│   DRAFTING                                       │
│   ├── Problem Definition                         │
│   ├── Evidence Assembly                          │
│   ├── Alternative Analysis                       │
│   ├── Recommendation Formulation                 │
│   └── Budget and Implementation Planning         │
│                                                  │
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│                                                  │
│   REVIEW                                         │
│   ├── Self-Review                                │
│   ├── Peer Review                                │
│   ├── Technical Review                           │
│   ├── Legal Review                               │
│   └── Budget Review                              │
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│   APPROVAL                                       │
│   ├── Executive Approval                         │
│   ├── Transmittal                                │
│   └── Distribution                               │
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│                                                  │
│   IMPLEMENTATION                                 │
│   ├── Work Plan Development                      │
│   ├── Budget Processing                          │
│   ├── Staff Deployment                           │
│   └── Service Delivery                           │
│                                                  │
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│                                                  │
│   MONITORING AND EVALUATION                      │
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    │   ├── Monthly Progress Tracking                  │
    │   ├── Quarterly KPI Review                       │
    │   ├── Annual Performance Assessment              │
    │   └── Lessons Learned                            │
    │       ──────────────────────────────             │
    │       Feeds back to next cycle                   │
    │                                                  │
    └──────────────────────────────────────────────────┘
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This lifecycle applies to every policy recommendation — whether it results in a new program, a legislative proposal, an executive directive, or an institutional reform. The scale varies. The process does not.

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Glossary

Absorption Rate. The percentage of an approved budget that an agency actually obligates and disburses within a fiscal year. A low absorption rate signals implementation bottlenecks. Calculated as: (Total Disbursements / Total Appropriations) x 100.

Bangsamoro Autonomy Act (BAA). A legislative measure enacted by the Bangsamoro Parliament. A BAA carries the force of law within the Bangsamoro Autonomous Region and is the primary legislative output of the Parliament.

Bangsamoro Development Plan (BDP). The medium-term strategic plan of the Bangsamoro government. The BDP 2023-2028 is the current plan, organized around three goals: moral governance, meaningful self-determination, and genuine socioeconomic development.

Bangsamoro Organic Law (BOL). Republic Act No. 11054, signed on July 27, 2018, and ratified in January-February 2019. The charter of the Bangsamoro Autonomous Region that establishes its government structure, powers, and fiscal framework.

Bangsamoro Planning and Development Authority (BPDA). The government body responsible for coordinating development planning, monitoring BDP implementation, and reviewing programs for alignment with the development plan.

Bardach's Eightfold Path. An eight-step policy analysis methodology developed by Eugene Bardach. The steps are: define the problem, assemble evidence, construct alternatives, select criteria, project outcomes, confront trade-offs, decide, and tell your story.

Baseline. The starting measurement of a condition before a policy intervention is applied. Baselines establish the "before" against which policy outcomes are measured.

Benchmark. A standard of performance used for comparison. Benchmarks may come from BDP targets, national averages, international standards, or evidence-based best practices.

Block Grant. The annual fiscal transfer from the national government to the Bangsamoro government, established under BOL Article XII, Section 8. The Bangsamoro government's largest funding source.

Capital Outlay (CO). Budget expenditure category covering one-time or long-term investments — equipment, vehicles, infrastructure, IT systems, and construction.

Comparative Analysis. A research method that examines how other jurisdictions or programs have addressed a similar policy problem. Used to identify best practices, cost benchmarks, and design features.

Concurrent Powers. Authority shared between the Bangsamoro government and the national government. Both levels can act, subject to coordination through mechanisms like the Intergovernmental Relations Body.

Cost-Benefit Analysis. A method of evaluating a policy by comparing its total costs to its total benefits, usually expressed in monetary terms. Used to assess whether a policy intervention produces net positive value.

Enumerated Powers. The fifty-five subject areas listed in BOL Article V, Section 2, over which the Bangsamoro government exercises exclusive legislative authority.

Evidence Registry. A document that lists every data point used in a policy recommendation, along with its source, date, and access location. Ensures traceability and supports the review process.

Fiscal Feasibility. An assessment of whether the government can afford a proposed policy recommendation given its current and projected fiscal capacity.

Focus Group Discussion (FGD). A qualitative research method in which a small group of stakeholders discusses a policy issue under the guidance of a facilitator. Used to gather community perspectives and test policy proposals.

General Welfare Clause. BOL Article V, Section 3. Grants the Bangsamoro government authority over matters not explicitly enumerated but necessary for the general welfare of the Bangsamoro people.

Implementing Rules and Regulations (IRR). Detailed rules issued by an executive agency to operationalize a law. IRRs specify procedures, standards, and requirements that the law itself does not detail.

Intergovernmental Relations Body (IGRB). The body established under the BOL to coordinate between the Bangsamoro government and the national government on shared powers, disputes, and BOL implementation.

Internally Generated Revenue (IGR). Revenue that the Bangsamoro government collects directly through taxes, fees, charges, and other sources within its jurisdiction, as distinct from transfers from the national government.

Key Informant Interview (KII). A qualitative research method in which a researcher conducts a structured or semi-structured interview with a person who has specialized knowledge of the policy issue.

Key Performance Indicator (KPI). A measurable value that demonstrates how effectively an objective is being achieved. KPIs are classified as input, output, or outcome indicators.

Maintenance and Other Operating Expenses (MOOE). Budget expenditure category covering recurring operational costs — travel, supplies, training, communications, utilities, and professional services.

Monitoring. The systematic tracking of implementation progress against planned activities, timelines, and performance targets. Monitoring is ongoing and occurs during implementation.

Needs Assessment. A structured analysis of the gap between current conditions and desired conditions for an affected population. Answers: what do people need, and how far are they from having it?

Other Bangsamoro Communities (OBCs). Communities outside the Bangsamoro geographic area that share cultural, linguistic, and historical ties with the Bangsamoro people, as defined in BOL Article III.

Outcome Indicator. A measure of the change in conditions resulting from a policy intervention — e.g., enrollment rate, income level, disease prevalence. Outcome indicators assess whether the policy is working.

Output Indicator. A measure of the products or services delivered by a policy intervention — e.g., beneficiaries served, facilities built, permits issued. Output indicators assess whether the implementation is producing.

Personnel Services (PS). Budget expenditure category covering staff costs — salaries, wages, benefits, allowances, and personnel-related expenses.

Policy Brief. A condensed document (typically 4-6 pages) that summarizes a policy recommendation for wider circulation. Designed as a gateway document that leads readers to the full recommendation.

Policy Cycle. The six-stage process through which policy moves: problem identification, analysis, formulation, adoption, implementation, and evaluation. The cycle is iterative — evaluation feeds back into new problem identification.

Policy Recommendation. A structured document that defines a policy problem, presents evidence, evaluates alternatives, and recommends a specific course of action to a decision-maker.

Programs, Projects, Activities, and Services (PPAS). The classification system for government expenditure under BAA 84. Budget items are organized as PPAS and categorized as Tier 1 (existing) or Tier 2 (new and expanded).

PSA-BARMM. The Philippine Statistics Authority regional office for the Bangsamoro Autonomous Region. The primary source of official statistics — population, poverty, employment, agriculture, and vital statistics.

Reserved Powers. Authority retained exclusively by the national government — defense, foreign affairs, monetary policy, customs, citizenship, and postal service. The Bangsamoro government cannot act on reserved subjects.

Shari'ah. Islamic law. The Bangsamoro government has authority over the Shari'ah justice system and related matters, including personal status law, Islamic banking, waqf, and zakat.

Special Development Fund (SDF). A ten-year fund established under BOL Article XII, Section 11, for post-conflict rehabilitation, reconstruction, and development in areas affected by conflict.

Stakeholder. Any person, group, or institution that is affected by, has influence over, or has an interest in a policy issue. Stakeholder mapping identifies these actors and their positions.

Status Quo. The current state of affairs — what happens if the government takes no new action. The status quo is always included as one of the policy alternatives in a recommendation.

Transmittal Memorandum. A formal communication that accompanies the approved policy recommendation when it is sent to the implementing agency or other recipient. Specifies the action required.

Ultra Vires. Latin for "beyond the powers." An ultra vires action is one that exceeds the legal authority of the government body taking it. Ultra vires recommendations are legally void and should be identified and prevented during the review process.

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